

Aug. 1915

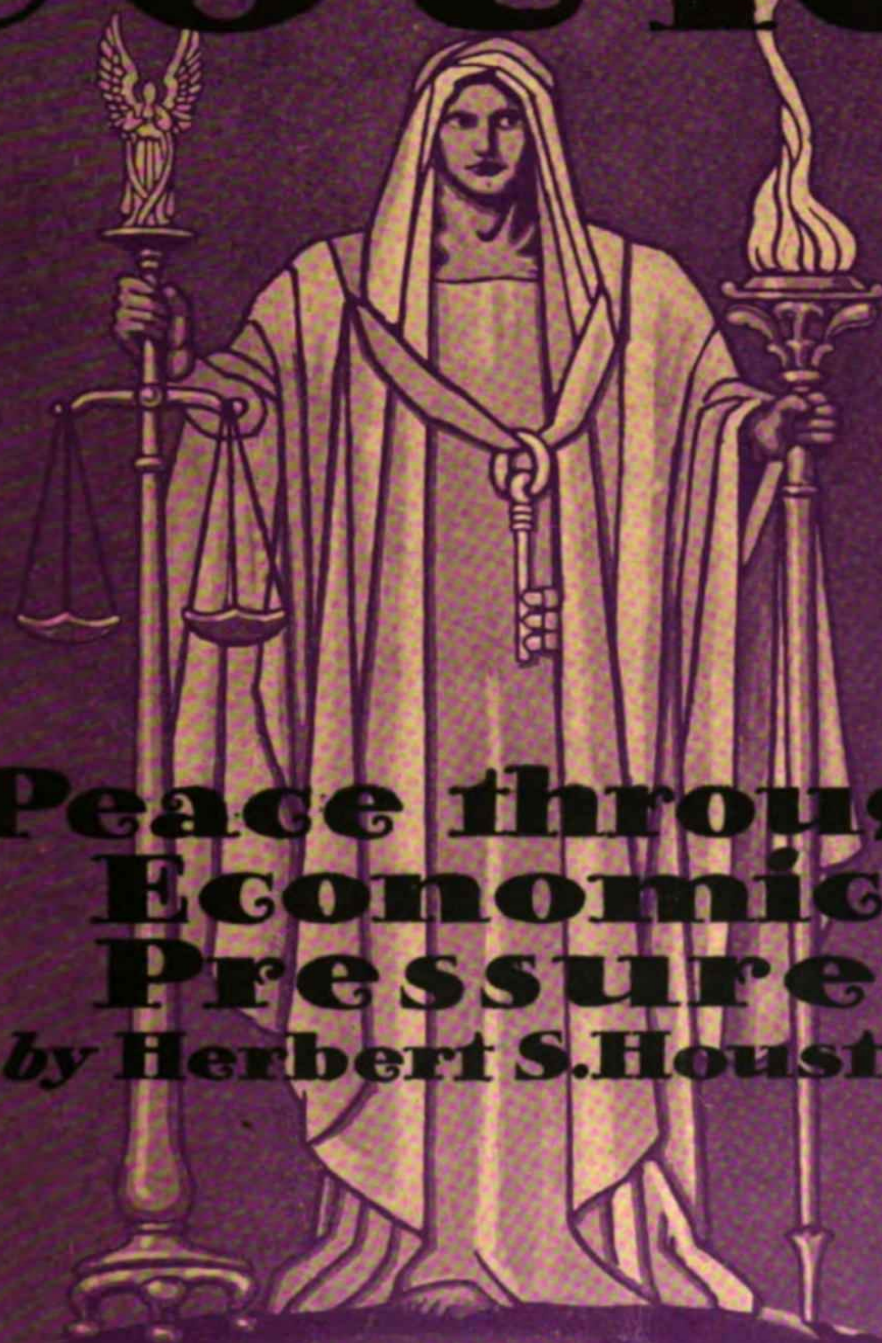
The

10 Cents

WORLD COURT

Vol. 1

No. 1



**Peace through
Economic
Pressure**
by Herbert S. Houston

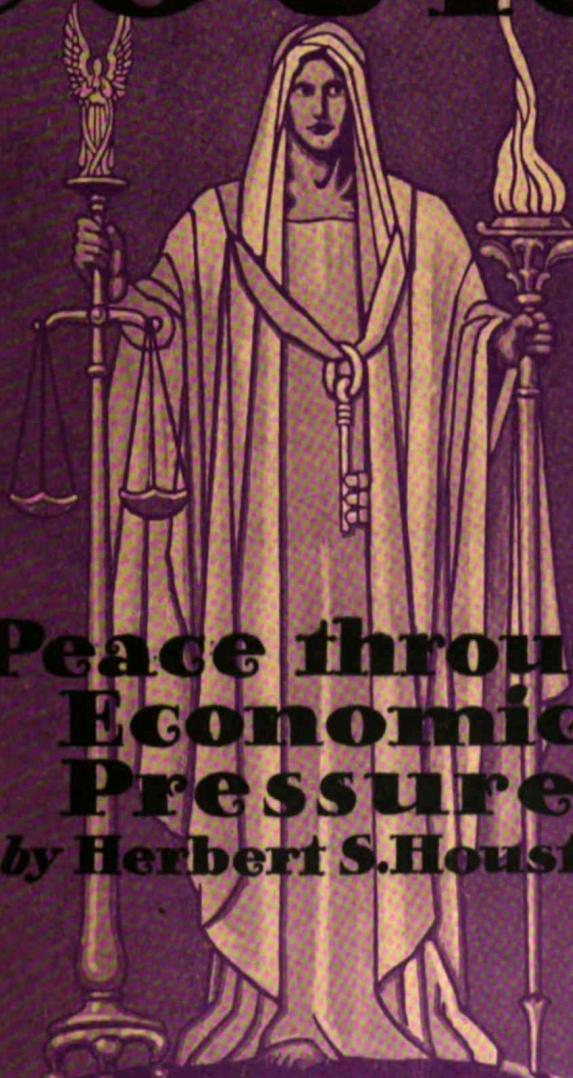
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THE WORLD COURT

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WORLD COMMENT

MATERIAL PROBLEMS MUST BE SETTLED FIRST

The developments of the Great War, up to date, do not hold out any hope that Idealism will be respected until the war is finished and the passions of the belligerents are cooled. It is evident that the practical and material problems must first be solved, leaving the ethical ones for later adjustment. It is to be feared, indeed, that the war will settle down not only into a ghastly conflict of blood and destruction, but also into one of retaliation and cruelty, in which all the laws of war hitherto recognized will be ignored and all international law will become a dead letter. The old Latin motto, *Inter arma silent leges*, is already construed more literally in practice than it was by the pagans of the pre-Christian era. Modern inventions of death-dealing machinery, poisonous gases and explosives, deadly air craft and submarines, have furnished an excuse to declare the former international rules for the conduct of war obsolete, and it is a question if this avowal will not become more pronounced as the war progresses. The world is confronted with the horrible possibility that war will come to mean actually, as it always has in theory, the denial of all humanity, all justice, all fairness, all chivalry, all mercy, and become a struggle to the death not a bit less brutal than that of the wild beasts of the jungle.

THE ASSAULT ON J. P. MORGAN

The attempted assassination of J. P. Morgan, the eminent financier, was undoubtedly the work of a crank, or a man crazed by too much brooding over the bloody tragedy now enacting in the theatre of the great war. It is the men of prominence who are usually the objects of attacks from the demented. The assassination of Presidents Garfield and McKinley was unmistakably the work of cranks whose murderous instincts had been set aflame by irresponsible newspaper talk and reckless political criticism. The mind of the man Holt who shot Mr. Morgan appears to have been unsettled in much the same manner. The incident tends to emphasize and bring home to every one the necessity for putting a curb upon the tongue and to refrain from vicious war talk. It is a time especially in this country, to soothe instead of to arouse passion. The spirit of neutrality should sit upon the tongue and the pen, preside at the feast, and accompany us in our daily round of duties. Let there be one great country in which the demon of strife and murder is not let loose. It is not always possible to protect a man against a crank, but it is possible to restrain the evil speech which breeds cranks.

WON'T DANCE TO OUR MUSIC

In the face of such a possibility a peaceful and unarmed nation like the United States is absolutely powerless to interfere with more effect than the twittering of sparrows against the combats of eagles. We may pipe our tunes of peace in Mr. Bryan's most resonant voice, but the ensanguined nations will not listen. If we fortunately keep out of the war, our reserve of moral force and idealism may be potent at some future day.

SECRETARY BRYAN'S RESIGNATION

Whatever may be the judgment of William J. Bryan's motives in resigning the position of Secretary of State in President Wilson's cabinet, there is an almost universal feeling of relief at the accomplished fact. We doubt if there is a single one even of Mr. Bryan's warmest admirers who would not admit, if brought to an honest confession, Mr. Bryan's utter incompetency for such a place. President Wilson was doubtless conscious of Mr. Bryan's failings when he grafted him into his cabinet, but he was moved by political considerations which at the time seemed to be compelling. And there is no doubt that Bryan has been highly useful to Wilson in bringing the Democratic party, to which Wilson was comparatively a stranger, to the support of the administration. Bryan's services in the Cabinet have been purely political. At the time the appointment was tendered him there was no dream of the outbreak of the great war which has imposed such a burden and strain upon the office of Secretary of State in conducting our foreign relations. There was to be sure the Mexican trouble, which was serious enough, but at the time probably not appreciated at its full gravity. There is a widespread belief that the fundamental mistake of our Mexican policy was due to Mr. Bryan's impracticable idealism. At that time the President was not fully awake to the weakness of Bryan's character, and carelessly allowed himself to be committed to a policy of drift and pusillanimity which, instead of saving Mexico from anarchy, has resulted in plunging it into the worst anarchy in its history, and has confronted the United States with possibly the hard necessity of military intervention to save the Mexican people from utter destruction. This is a result that was not sought by Mr. Bryan, but it is a result which his vacillation invited. By the time the European situation developed President Wilson was better acquainted with Secretary Bryan, and he judiciously took the conduct of the State Department, so far as it concerned the European crisis, into his own hands. This has saved us from a fatal involvement which could hardly fail to embroil us with one or more of the belligerent powers. For it is usually weakness and not strength which embroils a country in war when the country is seeking to avoid war. Secretary Bryan displayed such a capacity for blundering, such actual imbecility when it came to grappling with

practical questions, that his presence in the State Department always endangered the smashing of diplomatic crockery as the presence of a bull in a China shop endangers the smashing of actual crockery. President Wilson is entitled to credit for seizing the reins of our foreign relations and holding them with a firm hand the moment he became convinced of the utter incompetency and uselessness of the driver he had selected. The retirement of Bryan is a load off the shoulders of his administration which may save it from the utter ruin which threatened it. The country breathes more freely that Bryan has gone. In private life his platitudes and puerile philosophies can do comparatively little harm, notwithstanding his accomplishments as an orator, his personal magnetism, and his apparent sincerity. In their long acquaintance with him on the stump and the rostrum the American people have come to size him up pretty correctly. They look upon him much as they would upon an actor with a pleasing voice and presence who entertains but does not convince. His exposition of the beatitudes and generally accepted moralities, and his reiteration of common-place and tawdry sentiment passes off harmlessly like a glow of summer lightning so long as he is a private citizen, and we all have to be thankful that he no longer speaks with an official voice.

NO INTERVENTION IN MEXICO

The arrest of General Huerta on the Mexican border on a charge of violating the neutrality laws of the United States by plotting another Mexican revolution within our borders, adds new spice to the Mexican situation. Perhaps one revolution more or less in Mexico wouldn't make much difference, but the United States is bound to protect its neutrality and not permit the various factions of Mexican banditti to carry on their operations or to enlist men on our soil. No actual or would-be Mexican leader has as yet displayed sufficient patriotism to subordinate his personal ambitions to the welfare of his country. These leaders are not amenable to advice from Washington, and hence there does not appear to be any way for the United States to enforce order and protect life and property in Mexico short of intervention. However, intervention is not to be thought of for the present. This is a very inopportune time for our country to engage in a military adventure in Mexico. President Wilson, in a speech last winter, asserted that the Mexican people had the same right to cut each other's throats as the people of Europe had. If that was true then, it is equally true now. The stories of anarchy and starvation among the Mexican people are no doubt greatly exaggerated. We are so informed by a gentleman who has spent the last two years in and near Mexico. He says that the soil of the country is so rich and the skies so kindly that a very little labor suffices to raise ample food, and that conditions in all the towns he visited were orderly and business going on as usual. Most of the men make a business of fighting for some chief, while the women and children do the work and keep the pot boiling. Almost all the casualties are among the belligerents who have adopted fighting as an industry. It was so in Europe during the formative years of the various nations. Mexico's political development is about that of the twelfth or thirteenth century in Europe. We should wait patiently until some leader arises strong enough to dominate the situation and enforce order, in the mean time bringing to bear such moral influences as we can to hasten the pacification of our sister republic. But we do not think that public sentiment in the United States is ready to approve the shedding of red American blood in a Mexican crusade to compel that people to adopt our ideals.

A WOMAN'S DEPARTMENT

A woman's Department of the International Peace Forum, under the leadership of Mrs. Alice Gitchell Kirk, with headquarters at Cleveland, Ohio, has been organized. This Department will have a Bureau in the *WORLD COURT* magazine, conducted by Mrs. Kirk, who is a well known writer and lecturer who has been prominent in many activities for the promotion of the welfare of her sex and of the rising generation. The purpose of the Department is to promote the cause of National and International Amity by the application of safe and sane principles to world problems; to set clearly before the American people the ideals at issue between American thought and life as compared with the economic, social and political theories which spell revolution and ruin; to exemplify and reinforce the faith of the people in personal initiative as the mainspring of all real social, industrial, political and moral well-being; to encourage the study of the laws of hygiene and so conserve life and promote happiness and usefulness; to promote a loyal adherence to the institutions by which America has come to be a land of peace, liberty, and progress under law; to uphold the American ideal of home; the dignity of womanhood, and the rights of childhood; the love of country, the supremacy of the flag, and to maintain the everlasting reality of religion as the foundation of civilization.

A LESSON TO BE HEED

The wonders that Germany has accomplished in this war, not only in the marching and fighting of her armies, but in civic and industrial organization sets the pace for the world, which all the nations will have to approximate in the immediate future, or fall hopelessly behind. After waging war for a year against five great nations and several small ones, in which the number of men engaged and the expenditure of war material has been unparalleled, Germany shows no signs of exhaustion. She has demonstrated that her people cannot be starved out. She has demonstrated that she has an unlimited supply of men and munitions. While the armies of the opposing nations have frequently suffered from lack of ammunition, the Germans have always had an ample supply notwithstanding the lavishness of their expenditure. And in the civil life the whole people of the country not engaged in military operations have been organized and employed so as to produce the best results in supporting the war. The method, the careful planning, the foresight, displayed by the civil and military administrators have never before been equaled by any nation in the history of the world. The marvelous German efficiency is the natural outflow of this method and foresight combined with the energy of the German character. In comparison with the German method the method of the other nations seems haphazard. Other elements of the German power are industry, frugality and careful attention to details. Nothing is allowed to be wasted. The same marvelous organization and method was displayed by Germany in peace before the present war broke out. The strength that the nation displayed in industry and commerce was no accident, any more than is the strength she is now displaying in war. Here in the United States especially the lesson of Germany should be taken to heart. We need it in peace, and we may need it in war. We have the most vast and varied resources of any nation on earth, and our methods are the most wasteful. Our people possess phenomenal energy, but they waste much of it in frivolity. They have the most abounding wealth, and they dissipate it in extravagance. With the frugality and patience and method and organization of the Germans our nation could lead the world in peace or in war, in science, in education and in ethics.

NEW PROBLEMS

The invention and application of the submarines and the airships unquestionably call for new rules of warfare on land and sea. The German contention that the submarine cannot be held to the requirement of notice and search required of surface water craft would, if allowed, work against Germany if she had a navy and merchant marine afloat. It is because the German fleets, except the submarines, are practically swept from the seas, that the contention of Germany in regard to the submarines now works almost exclusively in her favor. A prominent American manufacturer, who has had much to do with the development of the modern submarine, asserted, in a recent interview, that the United States should concentrate its naval expenditures on the construction and operation of submarine craft. He avers that with a fleet of five hundred submarines of an approved type, efficiently manned, the coasts and coast cities of the United States could be perfectly protected against armed invasion. With such submarines watching, he says, no hostile ships could approach our coast and every hostile troop transport could be easily sunk. This is a question for experts, but it is evident that the development of submarine warfare is going to lead to great changes in the rules of the game. The same may be said with regard to air craft. If a German, French or English aircraft drops bombs behind the enemy's lines and hits non-combatants, men, women and children, or neutrals, are the nations sending out the aircraft to be held to particular liability? It is evident that the aircraft cannot give notice before the attack, cannot warn the civilians to get out of the way, cannot search the buildings on which they drop the bombs to see if they contain war material. H. G. Wells, the eminent British author, is out with an article in which he declares that the way to beat Germany is through the air; that England must send out aircraft by the tens of thousands and drop explosives all over Germany, blow up their arsenals and ammunition factories, their supply depots of all kinds, and carry the war home to the German people. If such a mode of warfare is adopted by all the nations can any restrictions be placed upon it—and will any restrictions be placed upon the operations of submarine craft?

PEACE BY COMPULSION

Some of the weaknesses and inconsistencies of the plan proposed by the Philadelphia League of Peace meeting are succinctly set forth in a communication from Hon. James Brown Scott in this issue of the *WORLD COURT*. It will be seen that the approval or adoption of such a plan by the United States would place the government and people of this country in a very equivocal position. To begin with, we should have to discard the advice given by George Washington in his Farewell Address, not to entangle ourselves in the wars and politics of European nations; and in the second place we should have to place the Monroe Doctrine in pawn. We should have either to abandon our independence as a sovereign nation, or else place ourselves in the inconsistent attitude of approving the use of force to coerce other powers while refusing ourselves to be coerced; and by implication we would place ourselves in the rôle of a bully to the weaker nations and of subserviency to the strong powers—unless we want to obligate ourselves to join in a war against the strong powers regardless of our preparedness or ability to carry on such a conflict.

The proposition to furnish a contingent to a posse comitatus to enforce the judgment of a World Supreme Court stands on a very different footing. The League of Peace plan would compel us to furnish a force to compel any other nation to come before the Council of Conciliation. The proposition formulated at Cleveland by the World Court Congress was to first establish the International Court by consent and agreement of the Powers, and then to help furnish a posse comitatus in case of necessity, to execute the decrees of the court. Any nation taking its case before a World Court voluntarily, would thereby tacitly agree to submit to the judgment of such Court, and in case it proved recalcitrant compulsion to compel its submission would be justified legally and morally.

PREPAREDNESS AND WAR

At a recent meeting at Cooper Institute one of the speakers was interrupted with the question: "Is Europe to-day an example of peace by preparedness?" The inference of the question was that preparedness for war, so far from preventing war, tends to breed war. This would be true if all nations would disarm. Europe to-day is not an example of peace by preparedness, but of war through unequal preparedness. Only one nation was thoroughly prepared for war, and that nation, in the conflict thus far, has proved the victor on all the battle fronts. If the other great nations had been equally prepared, there would undoubtedly have been no war. Half measures never led to satisfactory results. France and England and Russia knew, or should have known, that Germany was better prepared for war than any nation in all history ever was before. They made a show of preparation, but when the war began they were not half prepared. They had ample warning which they neglected to heed. They are now reaping the bitter fruit of their folly. Preparedness for war is not an insurance of peace if one potentially rival nation is permitted to so far exceed the others as to outclass them. Preparation for war is useless unless it is adequate.

MR. LANSING'S PROMOTION

The promotion of Robert Lansing to be Secretary of State following Mr. Bryan's resignation is a recognition of the principle of selecting men for public place for demonstrated fitness to perform the duties of the position rather than for political availability. It is not known that Mr. Lansing has any political influence to speak of. But as Mr. Bryan's assistant he demonstrated the possession of a comprehensive knowledge of international law, sound judgment, and the diplomatic instinct. He has been all along the real Secretary of State whom the President consulted, while Mr. Bryan was merely the figurehead. It is of course an open question whether it would not have been better for the President to appoint a man of national reputation and commanding ability to occupy the chief place in his Cabinet, relying upon Mr. Lansing for the detail and technical work. Such an appointment might have added strength to the Wilson administration, but while Mr. Lansing occupies the place the people of the country will have a comfortable feeling that no foolish mistakes are likely to be made, and that no half baked or hair brained theories will be promulgated to complicate our foreign relations and make our State Department a laughing-stock.

THE FREEDOM OF THE SEAS

Colonel House, President Wilson's personal representative, who spent some time in the principal capitals of Europe in the endeavor to ascertain whether there was any tangible peace sentiment which could be utilized by the United States as a basis of mediation, has apparently convinced the President that any movement in that direction would be useless at present. Col. House came in touch with the leading soldiers and statesmen of the various belligerent nations, and he found that no nation was ready to accept any peace terms that the enemy would be likely to offer. One important phase of public sentiment in Germany, as stated by Col. House is the idea that Germany's most important interests lie in colonial expansion and the incidental development of over-seas commerce, rather than in territorial expansion in Europe itself. To this end Germany, it is believed, will demand as a condition of peace the freedom of the seas—that is, the recognition of the principle that the property, except contraband, of all private owners shall be exempt from seizure on the high seas in time of war. This is a principle for which the United States has always contended. There is no reason why private property on the seas should not be exempt from seizure the same as is private property on the land. Germany's ambition for colonial expansion may be of vital interest to the United States if that ambition takes the direction of colonial expansion on any part of the American continents. It may be that when peace comes to be arranged our Monroe Doctrine will be subject to closer examination than it ever has been before, and if any disposition is shown by the contracting powers to contravene it, it will be up to the people and government of this country to decide whether they will let down the bars or firmly maintain it. And if we are to maintain it, the question of our physical power to do so will have to be considered.

PIRATICAL PERSECUTION OF BIG BUSINESS HALTED

The decision of the Federal Court in the suit brought for the dissolution of the United States Steel Corporation holds out some hope to business men that the persecution of big business in this country merely because it is big, is to cease. The case has to go to the Supreme Court of the United States, but the decision of this tribunal in the Cash Register Company case leads to the reasonable inference that it will uphold the decision of the lower court in the Steel Corporation case. The essence of the Cash Register decision is that the mere ability to commit the crime of combination in restraint of trade is not equivalent to the commission of the crime. The Cash Register Company, by reason of its bigness, could, had it been so inclined, put smaller concerns out of business by unfair competition; but the evidence adduced failed to prove that it had done so. The lower court gave it a clean bill of health, and the Supreme Court tacitly approved the verdict of the lower court. The government lawyers denounced the Cash Register Company in unmeasured terms virtually on the ground that its size made it a menace to competition, but the courts refused to hold it guilty because it possessed power which it did not exercise.

Nothing could show up in a clearer light the folly of the Government's persecution of big business. To dissolve a corporation, or to penalize it, simply because it possesses the power to commit an offense which it does not commit, would be equivalent to ordering the arms of a stalwart citizen cut off lest he use his fists to pound some weaker citizen to a jelly. The attitude of this administration towards business, if we judge it by some of the prosecutions for which it stands responsible, is that success in business is an evidence of an evil disposition and a menace to all other business. If the Federal Courts have successfully called a halt upon this piratical attitude towards the country's industry and commerce, the people of the country have reason to thank God for the Federal Courts.

ONE ESSENTIAL FACTOR OF A PEACE LEAGUE

Any grouping of powers in a League of Peace which leaves Germany out of the account must fail. There is no doubt that peace in Europe could be brought about quickly if Germany would offer moderate terms. For so far as the war has proceeded Germany is actually the victor. If peace were declared now on the basis of the status quo, Germany would be in possession of foreign soil which would vastly increase her resources and her prestige, and would have an army in being and stores of ammunition surpassing that of all the other belligerents combined. If Germany would enter into a League of Peace with the other great powers to compel the peace of the world, there would be no doubt of the ability of such a league to keep any and all nations from war; but with Germany left out, her veto upon any plan of compulsory peace would be sufficient to wreck it. We are only stating the situation as it stands to-day. What changes in it the future will make we cannot predict. It is evident that Germany's power cannot be materially crippled except by a long war. If the Allies can hold her in check and continue to hold the seas, that may bring about German exhaustion of which there are no signs at present. Such a prolongation of the war will also bring about the exhaustion of the other nations, so that their people will be ready for a just international arrangement to insure universal peace. But even then Germany will be a power to be reckoned with, and any League of Peace or International Bund that aims to be effective will have to include the great Germanic peoples.

THE REALPOLITIKER AND THE IDEALPOLITIKER

Mr. David Jayne Hill, former American Ambassador to Germany, says, in a recent magazine article, that there are two antagonistic schools of thought regarding the application of moral principles to international affairs: First, the Realpolitiker, who hold that international rights have no other basis than superior strength—in brief, that Might makes Right. Second, the Idealpolitiker, who desire to place the entire international system upon the basis of strictly moral conceptions.

It is generally recognized by publicists that as a matter of fact there is at present no enforceable international law. There are certain rules for the conduct of war set up, but no means of enforcing them. And as for the matter of declaring war, there is absolutely no recognized restraint. One nation may declare war against another for revenge, for conquest, for subjugation, or for the purpose of restraining and crippling its trade. In short, international law as it exists to-day is nothing more than a system of ethics or public opinion. Public opinion often makes its influence felt in a nation, and may become enacted into enforceable laws. But there is no means of enforcing ethics as between nations, and any nation which feels itself strong enough to do so, may defy world opinion.

An international tribunal for Judicial Settlement, which we might call a World Supreme Court, established by the consent and coöperation of the great powers, could gradually erect a body of international law that would be both ideal and real. This is the only way in which international law will ever come to have any actual, positive, binding force.

IDEALISM NOT PRACTICALLY POTENT

In spite of this fact, there are idealists like Former Secretary Bryan who, while insisting that the United States should set up as a sort of moral mentor for the world, nevertheless contend that we should not increase our armament. They proclaim themselves advocates of peace at any price. This may be correct as a mental attitude, but in these strenuous times, when the most powerful nations are appealing to physical force to adjust questions which might better have been settled by diplomacy, the still small voice of moral suasion, though coming from potentially powerful America, is not likely to be heard, above the din of battle. We can record our protests, of course, but so far as any practical measures to enforce humanity are concerned, we are quite powerless. Our government should either keep out of the mess, and wait for returning reason, after the war is over, to pave the way to universal peace through Judicial Settlement—or, we should immediately proceed to place ourselves in a condition of preparedness for war.

GERMAN SOCIALISTS FOR PEACE

Utterances of various Socialist leaders and newspapers in Germany in favor of peace have recently filtered out of Germany, and have aroused considerable interest. The German Socialists differ materially from the Socialists of many other countries, in the fact that they constitute a recognized and responsible political party which has a large representation in the German parliament. The idea has widely prevailed that the German people were absolutely united in favor of carrying on the war to the point of "world domination or downfall," but now we find men and publications of influence deprecating the idea of conquest and annexation of territory, or an invasion of the liberties of other peoples. They declare that the mass of the German people want peace, and that Germany's military victories place the German government in a position to negotiate peace with justice and honor.

Whether these utterances represent any deep or widespread sentiment in Germany, we have no means of knowing. But their publication serves to inspire a hope that the implacable purpose of Germany to carry on a war of conquest has been exaggerated, and that discussion of terms of peace might not be premature even now, if some feasible plan were presented.

EDITORIALS

“THE WORLD COURT” makes its début to-day. It supplants the magazine formerly published by the International Peace Forum, entitled *The Peace Forum* but as will be observed, it undertakes a much larger and far more vastly important work in its ambition to further the creation of a World Court. As a magazine, an effort has been made in this initial issue to give it all the veneer and finesse of the latter-day periodical. As the months proceed, every effort will be made by the men of letters associated with it and its contributors to further its value as a publication of world wide importance. The necessity for such a magazine was made patent at the recent World Court Congress. The delegates and many men of affairs who participated in that epochal Conference realized the enormous importance of an organ to voice the sentiment for this great project.

During the past few months, the work of the International Peace Forum has been specifically directed to the project of furthering the institution of a true International Court of Justice, which was adopted in principle by the forty-four nations composing the Second Hague Conference (1907), including Germany and Great Britain. The suggestion has also met the approval of many State Legislatures, leading Chambers of Commerce and other representative civic, industrial, educational and religious bodies. It received a mighty impulse and enthusiastic endorsement at the recent largely attended World Court Congress, at Cleveland, Ohio.

This project is thus no chimerical scheme or iridescent dream, but a well matured plan which if properly sustained will prove a powerful factor in insuring the future peace of the world. Such a tribunal as is contemplated would not only be able to adjudicate specific disputes but would gradually build up a body of International Law as potent in preserving the peaceful

relations of nations as the body of domestic laws is in preserving peaceful relations among the citizens and states of the several nations.

In becoming more specifically the organ and representative of this world-wide movement, this magazine broadens its field and adopts a name more expressive of its larger mission.

The Peace Forum, during the four years of its existence, has steadily grown in circulation and usefulness and influence. It has become the medium through which many of the most distinguished writers and speakers have sought to reach the public. THE WORLD COURT will continue to be the medium of expression of such contributors of national and international reputation. In coöperation with them it will continue to advocate peace in all relations of private and public and international life, with the specific object in view of extending the principle of judicial settlement which now lies at the foundation of the civil authority of nations, until it becomes the foundation of all international relations, when nations will no more think of submitting their differences to a duel between armies and navies than individuals in civilized and well ordered countries would think of resorting to the arbitrament of the private duel.

Not only will THE WORLD COURT advance the idea of judicial settlement in relation to world disputes, but will strive to establish the principle as the basis of national peace and prosperity. This is a work which should appeal to all business and professional men, indeed, to all toilers whether with hand or head. Laborers in all fields are entitled to the fruits of their toil. The humble worker with his hands is not to be dispossessed by the confiscatory programme, any more than is the farmer, the merchant, the manufacturer or the educated specialist. It is a trite saying that the interests of capital and labor are identical,—a truism no one dares formally to dispute; but there is no doubt that in the enactment of legislation and the execution of laws, representatives of these respective interests have acted as if they were antagonistic, and one has sought to get the better of the other. Judicial settlement can alone hold the scales of justice evenly balanced and thereby guarantee fair play. The toiler working with hand or brain is employing a capital given him by nature, and with industry and frugality under the operation of the rule of equal opportunity, he may accumulate the capital of money, goods, machinery, or land, which in effect gives him additional earning power. Thus, one class is constantly merging into the other, and

each is equally interested in the integrity, and independence of the courts. Both are equally interested in the preservation of the rights of personal property and in opposing legislative and executive invasion of their rights. Both are equally opposed to bureaucracy in the government and interference with private management. The laborer does not want to be compelled to labor for a wage arbitrarily fixed by a government bureau, nor should a railroad or other industry be compelled to submit to harrasing and paralyzing control. Experience has demonstrated that railroads, telephones, telegraphs and other utilities are more efficiently conducted under private than under public ownership, as are mills, shops, and stores. A multitude of government commissions help to give a multitude of jobs to a multitude of politicians, but they do not reduce the cost of living.

Efficiency is evolved by private effort and not by official meddlesomeness. Law is only beneficially operative when backed by public opinion strong enough to vitalize and enforce it.

The broad platform of "The World Court" is peace at home and abroad, peace in society, in the church, in business and industry; immunity of business and industry from the menace of such malicious inquisition under the protection of a Government Commission as Chairman Walsh attempted in a manner that aroused the protest even of the Commission of which he is the head. We invite all who believe in peace, in law and order and justice, in the reliance upon judicial rather than warlike processes for the defense of the individual and the state, to unite with us in the movement for judicial settlement. What we propose is to place National morality on a plane with the standard of individual morality, which has brought about the reign of law and order in the enlightened nations. This plane of morality would do away with public war as it has done away with private war. International Judicial Settlement will react beneficially upon National Judicial Settlement and lead to the adoption of higher standards, both in National and International life.

CRIMINAL WAR TALK

Among the most insidious and reckless foes to peace are those who are constantly predicting wars between the United States and other nations. At the present time there is absolutely no reason why the United States should go to war with any nation on earth. The favorite pastime of some alarmists for several years past has been to predict war between this country and Japan. Nobody can show any reason why we should attack Japan, and all the evidence and all the signs of the times go to show that Japan has not the least intention of attacking us.

A Minneapolis journalist who recently returned from a six months' stay in the Orient, and who was present with the Japanese at the siege of Tsing-tao, gives some cogent reasons why Japan will not seek war with the United States, despite some disputes over the immigration question and possibly in regard to the open door in China.

Japan at the present time is in financial difficulties. The existing war has kept tourists from her shores and curtailed her trade, while putting her to large expenses in war preparation. Not one penny of the war debt incurred in the war with Russia has yet been paid. What is holding Japan together to-day is her export of tea and silks to the United States. Millions of her citizens are dependent upon these trades for their livelihood. Japan doesn't want the Philippines because she has now ample territory more geographically and climatically favorable to her needs, and she is not greatly exercised over the emigration question, because she needs immigrants herself. The government would much rather keep the people at home—besides her naval and military experts are wise enough to know that they would stand little chance in attempting to fight the United States across eight thousand miles of ocean.

The talk of war with Germany or England, whichever may be the winner in the European conflict, after that awful contest is finished, is equally pernicious and damnable. There is no reason why we should go to war with either. The United States intends to observe all the obligations of neutrality and so to conduct herself as to win the respect and good will of all the combatants. It would require a supreme act of folly on our part to drive us

into war with any European country. So long as we observe our moral obligations we are in no danger of attack.

A PREMATURE MOVEMENT

During the month of June "A League of Peace" was organized in Philadelphia. The tentative proposals of the originators of the movement, as reported in articles in the daily papers, is to obtain "an agreement from the various nations of the world to submit all differences to adjudication or arbitration, to use their military forces to prevent any one of their number from going to war before all questions in dispute shall have been submitted to an international court or council; and that the powers in the agreement codify rules of international law by which they shall abide." In order to give the movement an appearance of solid backing a formidable list was published of the names of prominent men who had been invited to the Philadelphia conference.

Any careful and intelligent student of the world situation must recognize the fact that an effective agreement of this character among nations is impossible before the conclusion of the great war in Europe and Asia. The most powerful nations of the world are engaged in this Titanic struggle, and it is not supposable that they will enter into an arbitration agreement before the terms of peace are concluded. Any agreement made by any number of nations omitting the now belligerent nations would be futile, for the nations at war command vast armies and navies and stores of war material and military organization against which the now peaceful nations would contend in vain.

The proposition of the Cleveland World Court Congress was practicable and feasible. It was to formulate a plan and have it ready to submit to a world conference after the present war is over, if possible with the moral support of the United States and the other American nations.

Our government could well afford to support a movement of that kind after the war, but it could not afford to join an arbitration league before the war ends, which proposes to back up its demands by military force.

It will be remembered that in signing The Hague Convention the American delegates made the reservation that no provision should be so construed as to require the United States of America to depart from its traditional policy of not intruding upon or interfering with, or entangling

itself in the political questions or policy of internal administration of any European state. This was in accordance with the traditional policy of the United States, embodied in Washington's Farewell Address, which was under no circumstances to interfere in the affairs of Europe. We certainly could not be a party to an agreement to lend our military forces, in combination with the military forces of other nations, to prevent one European nation from going to war with another. We might, after the war, become a party to an agreement to organize a World Court for Judicial Settlement and to contribute our contingent to the posse comitatus of such world court, on the invitation of all the powerful nations of both hemispheres.

The negative part of our Monroe Doctrine is the restraining injunction of Washington's Farewell Address. We do not propose to meddle in the affairs of Europe, and President Monroe warned the European nations that we would not permit them to meddle in the political affairs of this hemisphere or to attempt to impose their political systems upon any of the American nations. If we start in to interfere now, in accordance with the so-called "League of Peace" proposition, what becomes of our Monroe doctrine? The war in Europe will have to be fought out to some definite conclusion before any effective and compelling League of Peace is possible.

As indicating the attitude of a portion of the press toward this movement we reproduce the following editorial from the Detroit *Free Press*.

THE LEAGUE OF PEACE

The new scheme for a League of Peace can make very little appeal to practical minds that give it real attention. Like all such plans it is largely visionary and based upon assumptions and premises which have no basis in fact because they fail to take into account the fundamentally static selfishness of human nature. The leaders of this movement strike ground only at one point and then impotently. They recognize the fact that anything done in the way of working for permanent peace must be accomplished through force and not by moral suasion.

Their scheme is to gather together the powers of the earth into a peace league, the members of which will pool their military and naval strength for the common good. No country will thereafter be permitted to make war upon another until certain measures of prevention have been taken and certain formalities observed, all with a view to settling the trouble in a peaceful way. If a government transgresses, the whole world will immediately jump on its back.

This is an extension of the international police idea of visionaries who only a short year ago were still telling the world that conflicts between great powers were at an end and that establishments for the prosecution of war might henceforth be limited to police armaments for keeping in order the smaller and less civilized nations such as the Balkan states and Mexico. Naturally the European war has smashed this illusion. But it has not discouraged the illusionists.

A very important defect in the League of Peace scheme is that it cannot be guaranteed to work, and a plan of this sort which cannot be guaranteed is likely to become a greater menace to peace through backfire than no agreement at all. It means a close association and conflict of unmixable interests and ambitions which are sure to create friction of a most inflammatory sort.

Suppose the United States and Japan and the great powers of Europe and the A. B. C. alliance join this league. Suppose after the league is duly organized two of the most powerful states, states relatively as strong as Germany and Russia were at the outset of the present war, get into a

wrangle. Suppose they disregard their promises and incontinently go to war. How are they to be stopped and disciplined? Only through a general world war beside which the one now in progress might sink into insignificance. The whole population of the globe might be obliged to fight in order to keep the peace.

A great defect in all these schemes of peace promoters and disarmament enthusiasts is that they hope to create an artificial condition of placidity without natural incentive, and fail to take into account the element of self-interest which alone can make a peace pact of practical value. Alliances, ententes and treaties among nations having common interests have played large parts in the history of the world and have led to prolonged periods of peace as well as to bloody wars, but they generally have been enduring and valuable in close proportion to the strength of their appeal to self-interest among the parties concerned.

THE IDEALS OF PEACE AND THE REALITIES OF WAR

WAR AND THE IDEALS OF PEACE. By HENRY RUTGERS MARSHALL,
L. H. D., D. S. published by Duffield & Co. New York.

“War and the Ideals of Peace,” is rather an abstruse study of the mental and psychological processes which form human character and lead to human action. It is mainly a discussion of the validity of the contention that recurrent wars are inevitable because man is governed by the inexorable laws of nature, which compel him to contend for dominance. The author admits that man is by nature a fighting animal, but contends that he possesses also “creative spontaneity,” and may by his own efforts mould and shape ideals that will enable him to triumph over the natural bent of his disposition. Thus individuals may be led in the ways and thoughts of peace and mould the policy of nations to peace rather than war.

This is obviously true. It is shown in the history of nations, in the fact that through enlightened public sentiment many nations, especially during the past one hundred years, have been impelled to peace when there was temptation to war. The exceptions, when wars have occurred, have been due to the fact that enlightened public sentiment suffered a relapse or reversion and favored war. The antidote for war undoubtedly lies in developing the individual conscience, setting its creative spontaneity to work to formulate peace ideals—in short, to get the mass of men to think peace instead of war. Public sentiment is simply the superior weight of individual opinion, and if public sentiment is decisively for peace, the nation in which such public sentiment prevails will not go to war except to repel aggression.

This leads us to a point of disagreement with the author of the book in his practical application of his theories to the correct policy for this country to pursue. That we should stand at all times for the principles of peace no right-thinking man will deny. But that to realize these principles it is the duty of this nation to disarm without a simultaneous agreement of the other great nations to do likewise, we emphatically deny. Dr. Marshall says:

“We are a specially privileged people, free at present from enemies who might wish to attack us, and able to arm without too long delay should we see signs of growing danger of aggression. If we failed of alertness we might by a bare chance be caught unprepared by some enemy not now in sight,

but it were surely better to take this small risk than to waste our energies in what is likely to be uncalled for preparation. Protected as we are by our broad ocean boundaries we have a unique opportunity to show to the world the benefits accruing to a state that does not spend a large proportion of its resources upon implements of the construction of implements of destruction and upon the training of large bodies of citizens to their employment. Did I, as an individual, find living at some distance from me a first class prize fighter, marvelously efficient, but at the time thoroughly exhausted, it would surely appear stupid for me to take my time and energies from the pursuits for which I seem fitted in order to devote myself to the attempt to become what could not at best be more than a second rate prizefighter, really because of fear that the first rate prizefighter might regain his strength and at some future time run amuck and do me injury.”

The present mode of fighting, as developed in the trenches of Belgium and France, which takes all the glamour and romance and glory out of war, and reduces it to a dismal contest of organization and machinery, requires, for its successful prosecution, preparation of forces and machinery which demands much time. The recruiting, organization, training and equipment of men to fight modern battles is also a work of considerable time. In the preparation of naval defense time is still a more essential factor. The ocean which separates us from Europe is no longer a barrier, but a highway. The transportation of men and arms and munitions is far easier and more expeditious by sea than by land. So the broad ocean is no longer our protection.

The analogy of the prizefighter and the private citizen misses the mark. The prizefighter is held in check by the local police force which all governments and municipalities must possess, no matter how peaceful their ideals. If there were an international police force capable of preserving the peace among nations, then it would not be necessary for a nation to arm, any more than it is now necessary for the private citizen to arm. But in the absence of such a protection it is necessary for each nation to look to its own protection.

In the absence of a world Court of Justice empowered by the stronger nations to settle international disputes, and armed with power to enforce its decrees, world peace can only be maintained by a proper adjustment of the balance of power. If all the great nations or groups of nations were about equally armed and equally prepared, the chance of wars would be minimized. The present conflagration in Europe and Asia is due largely to the fact that rival powers were nowhere nearly equally balanced. One power so amazingly surpassed the others in preparedness that conflicting forces could not be held in check. Had England and France been as prepared for

war as Germany, and as efficiently organized, or had Germany been as negligent as England, the war could hardly have occurred. It would not have cost England a tithe of what she has already expended in this war to have been so well prepared as to have enabled her to absolutely hold the balance of power.

The argument that at the close of the present great war any of the belligerent nations will be too exhausted to attack us, will hardly hold water. The victor will have a great organized military establishment, with troops inured to war, and perhaps filled with the spirit of war. To such a power a rich, unarmed nation like ours might be an easy prey. At the conclusion of our civil war this country, although it had been for four years fighting an exhaustive war, was, from a military standpoint, stronger than it ever was before or ever has been since.

We may perhaps in time rely for peace on world ideals of peace, but until such ideals are of universal acceptance we cannot put our trust in them. We hope that our nation may, at the end of this war, be instrumental in organizing a world tribunal for Judicial Settlement, but in order to have weight in the world councils looking to that end, we shall have to speak with a strong voice. We shall have to be strong not only in ideals, but in real and potential force.

ONE PREDICTION FULFILLED—WHAT OF THE NEXT?

Writing in 1889, Hall, the famous English publicist, predicted that the conduct of the next great war would be hard and unscrupulous, but he added: "There can be very little doubt that if the next war is unscrupulously waged it will also be followed by a reaction toward increased stringency of law. I look forward with much misgiving to the manner in which the next great war will be waged, but with no misgiving at all to the character of the rules which will be acknowledged ten years after its termination by comparison with the rules now considered to exist."

The prediction of the great publicist, made so many years ago, as to the next great war, has come true. The intervening wars have been trifling by comparison and marked by no material increase in severity, but the present war has passed all the bounds of precedent and even of imagination. Let us hope that the prophecy as to the modification of the laws of war after the present conflict is ended will be as measurably fulfilled.

The invention and application of death-dealing machinery and chemicals may even give the prophecy a larger fulfillment by the abolition of war altogether. For this we humbly hope and pray.

THE ADMINISTRATION FORCE OF THE SUPREME COURT OF INTERNATIONAL JUSTICE

HON. FRED DENNETT

A court is created for the purpose of administering justice, under law.

“This then is the general significance of law, a rule of action dictated by some superior being.” And then the great teacher of the English Common law lays down the principles of the moral law “that we should live honestly, should hurt nobody, and should render to every one his due”; and of the law of nature “that man should pursue his own true and substantial happiness,” adding, “that this is the foundation of what we call ethics, or natural law; for the several articles into which it is branched in our systems amount to no more than demonstrating that this or that action tends to man’s real happiness, and therefore very justly concluding that the performance of it is a part of the law of nature or, on the other hand, that this or that action is destructive of man’s happiness, and therefore that the law of nature forbids it.”

From these two prior laws he derives the “third kind of law to regulate this mutual intercourse, called the ‘law of nations,’ which, cannot be dictated by any, but depends entirely upon the rules of natural law, or upon mutual compacts, treaties, leagues, and agreements between these several communities: in the construction also of which compacts we have no other rules to resort to, but the law of nature: being the only one to which all the communities are equally subject.”

The “natural law” is no longer the controlling “law.”

That which most promptly suggests itself to the mind of the ordinary man, when law is talked of, is not the moral law or the natural law, but municipal law, “a rule of civil conduct prescribed by the supreme power in a state, commanding what is right and prohibiting what is wrong.”

The tendency towards the enactment of man made statutes has magnified the “municipal Law,” until it is in the way of becoming the only law, and as it overshadows, then the principles of the moral law and the law of nature gradually are dwarfed, and become atrophied. The law of commerce is the “municipal law”; and as the commercial instinct becomes greater, the municipal law becomes the prevailing law. Statutory law takes the place of “common law.” Ethics are replaced by written inhibitions. The moral law becomes evanescent; men consult the revised codes to find the boundaries of that search for happiness, instead of consulting their inner consciousness.

It follows that there is left no such law as “international law,” for there are no statutes to bind nations and no supreme power to enforce a rule of conduct, and the ethics of natural law are not a world restraining force.

The evil of statutory law—necessary as it is—lies in the fact that man becomes prone to look to the numerous volumes to find a guidance of conduct. Nations are formed of members of society. If the units of the nations have become trained to look to the statutes for the control of actions, and feel at liberty to do those things which are not forbidden therein, they, as part of the nation, will refuse to be guided in their relationship with other nations by anything except their personal inclinations; moral ethics as a rule of conduct having disappeared.

Instead of the restraint of respect and love a new controlling sense is established, that of fear.

A court is created as a means by which to administer justice. Without the power to compel the observance of its decrees a court is but a comedy.

If there be no supreme power, there can be no supreme court. For without a supreme power there can be no way of establishing a responsible force having vested in it the duty of compelling the observance of the decrees of a supreme tribunal.

If a Supreme Court of International Justice be established and there be created an international force to enforce the decrees thereof, the units of that force will be responsible to the nations from whom they are taken, and not to the Supreme Court, unless that Supreme Court become more than a

judicial body; it must become also a supreme administrative body of the United States of the World. Enforcement of a decree is impossible unless there is unity of force back of it. If a majority be relied upon, then the majority may be found to change. Government can only prevail when the opinion of the majority becomes the accepted doctrine of the whole. Otherwise revolution.

The Supreme Court of International Justice, to be of practical use, must pass from its position of Supreme Court to Supreme Controlling body. An utopian dream, which may in the generations to come be a reality. But not for generations.

Without a supreme controlling body there must be something to substitute in moral effect. There has existed a something which has been one influence to prevent nations from being always at war, when their individual advancement was opposed.

Dread; a greater controlling power than fear.

Dread of devastation; dread of wanton destruction; dread of extermination.

War is undertaken by a weaker power only when the alternative is dread of something even greater than devastation or wanton destruction—dread of extermination.

But the dread of war has ceased to prevent war; because the horrors of war had lost their vividness.

That universal peace will some day reign supreme must be accepted by all who believe in a progressive civilization. This includes all the thinking world. If there is to be universal peace, and if it is not to come through a consolidation of all nations, which is extremely improbable, then it must come from some controlling feeling, which will in itself create the administrative branch of the Supreme Court of International Justice.

The police force to compel observance with the decrees of this Supreme Court will be incorporeal: It will be Dread.

There never will be established an international corporeal force capable of enforcing the obedience to the decrees of this Court. That means the establishment of a war force to prevent war; it is foolish in its conception. The power against which a decree is to be enforced will withdraw its

representatives from the international force, and by the establishment of alliances, just as at present, meet with arms the force of arms.

If it be a weak nation; it will do, as it does now—obey the mandate through fear, unless the mandate means extermination, when it will fight. National extermination, while fighting, is better than extermination without resistance.

The first power for enforcement will be “Dread.” A greater dread than exists to-day, because of a greater object lesson of horror than has existed heretofore.

All things, that are, have a reason for their existence. The present conflagration must have its *raison d’être*. In orderly evolution it is not to be presumed that the reason is for the world control by any one power. That suggestion might meet the conceit of a nation, but would not meet the approbation of the world.

Nations having deviated from the moral law, the individuals thereof having gradually become accustomed to written rules of regulation, it has been necessary to substitute something for the moral code, for the present, until the moral code can once more take its rightful place.

Dread will be enthroned as the enforcer of agreements. Dread of war will prevent war.

That this may come about, it is necessary that there shall be a concrete example of the horrors of war in all its awful intensity. As nations have increased and as armaments have been multiplied, it is necessary that the lesson of “dread” must be planted firmly.

The times were ripe for the lesson. The wonders of art can bring before an audience a scene of horror as it was enacted thousands of miles away.

Hence the horrors of the present war. It must not be thought for a moment that they have reached their climax. They will be permitted to continue until they have increased to such intensity that men will mention war with bated breath, and nations that pretend to civilization will arm only to protect themselves from uncivilized countries; until the uncivilized become civilized and armaments cease.

But the first great preventive of war will be “Dread,” succeeded in the ultimate by the acceptance of the rule of ethics.

Man may create a Court of International Justice. God alone can create the force back of it for the enforcement of its decrees.

Out of that which appears evil, good does come. The sufferings of the battlefield will be sanctified by the generations of warless existence.

There were the burnt offerings and sacrifices of the Old Testament. They were symbolical.

The battlefields of Europe are the burnt offerings for perpetual peace.

The power of enforcement will first be practical, "Dread," but as this is a base reason, it will gradually be changed by the light of a better understanding into the rule of ethics.

A WORLD COURT DEMANDED BY A NEW WORLD LIFE

BY
JOSIAH STRONG

There is, I think, a widespread impression that great world events of profound importance are now preparing. The break-down of time-honored theories of international relations based on armed force would seem to mark the end of the present war as a favorable time for the reconstruction of the political relations of the nations on a higher plane.

Since the beginning of the simplest form of life on this planet, there has been down through all the ages, a stream of tendency toward increasing diversity, and toward a more complex and more highly organized form of life. This biological law is also the great law of social progress, that is, first, differentiation, and then, coördination and integration. Or, in other words, there is, first, the development of diversity, and then, the organization of these diverse elements into a social unity.

For thousands of years nations and races became increasingly unlike until within the memory of living men, when this time-long stream of tendency, having accomplished its work, was reversed; and now, for nearly a century, there has been an increasing tendency toward oneness—the coördination and integration of different peoples into one great world life. This new tendency was caused by the application of steam to transportation by land and sea. In the first stage of international commerce transportation by caravans and row boats was so costly that only luxuries, such as gems, precious spices, and silks, were articles of commerce. This concerned only the few. The second stage was introduced by the application of sails and the

discovery of the mariner's compass, which made it possible to transport many of the conveniences of life, which affected increasing numbers. The third, and present, great stage of commerce began when railways brought the produce of continents to the seaboard, and the triple expansion engine made great merchant vessels possible. As a result, the necessities of life are now transported in immense quantities, which fact vitally affects the entire people. These conditions have created an interdependence of the nations from which there is no escape. If a nation is agricultural, it is dependent on others, both for markets and for manufactures; if it is a manufacturing nation, it is dependent on others, both for markets and for food.

When an agricultural people attempt to make themselves independent of other nations by establishing their own manufactures, they soon discover that by a sort of *mechanical Malthusianism* machinery inevitably increases several times as fast as population; hence the nation no sooner becomes independent of those who wish to sell than it becomes dependent on those who wish to buy. The only possible way to avoid such national interdependence is to adjure modern civilization.

The differentiation and organization of a world industry, which necessitates an ever-increasing international dependence, has created this new world life. In earlier ages, when nations were economically independent, political independence was natural and inevitable. Of course there could be no world-consciousness when a common world life did not exist, and each sovereign nation was sufficient unto itself. But as the world's economic life becomes more nearly one—as it certainly will under the quiet compulsion of economic law—the increasing interdependence of nations places the well-being of each increasingly in the keeping of others; and their relations to each other become more and more vital until their mutual service becomes a matter of life and death. If, for instance, all other peoples should make and enforce a declaration of non-intercourse with Great Britain, that nation would literally perish in a few months.

Evidently, the increasing interdependence of the nations is creating new international rights and duties, but there is no World Legislature to recognize and legalize them; there is no World Court to interpret and apply them; and there is no World Executive to enforce and vitalize them. Precisely here appears one of the most obscure and, at the same time, one of the most potent causes of the war.

The economic and industrial organization of the world has far outgrown the political organization of the world. And in spite of all efforts to keep the peace, this will continue an active cause of war until there has been provided for the new world life an adequate body politic. Until then governments will undertake, by military power, to make, interpret, or enforce a law of nations to please themselves; and this seizure of civil functions on the part of armed force is war; it is an attempt to make might right; it is the law of the jungle; it is the abnegation of civilization; it is anarchy between nations.

Now that the world is coming to self-consciousness, it must accept the responsibility of its future, and take intelligent direction of it. The new tendency toward world integration is permanent because it is due to new conditions which are permanent. This cosmic movement toward coördination and integration is the very essence of the new civilization which is reshaping the world. Nations and individuals have unconsciously, and, therefore, unintelligently, and slowly adapted themselves to these changed and changing conditions. Now is the accepted time to undertake a readjustment which shall be *conscious* and, therefore, *intelligent*—a broad-minded “coöperation with the real tendency of the world.” which Carlyle called the “insight of genius.”

The new world life means, sooner or later, a world consciousness, a world conscience, a world ethics, and a World Court, together with the other departments of an organized political life embodied in a Federation of the World.

RURAL COÖPERATION IN EUROPE AND THE UNITED STATES

BY
GEORGE K. SHAW

In the Annual Reports for 1914 of the Federal Council of the Churches of Christ in America, there are some interesting data upon the social effects of Coöperation in Europe. This report was prepared by the Rev. Chas. O. Gill, Field Investigator for the Commission on the Church and Social Service. In making his investigations he visited no less than twelve countries and gained information as to two others from members of the Commission who visited them.

In a previous volume entitled, "The Country Church," Mr. Gill had pointed out that there is no satisfactory solution of the problem of rural life apart from the reorganization of rural business. For this reason it was determined to make a study of European countries that had given serious attention to the organization of farmers for business purposes. One object of the study was to learn what part the rural churches should take in a movement necessary for the preservation of a high standard of country life and for insuring the possibility of a successful rural church.

It was found that in most of the area covered the coöperative movement had passed beyond the experimental stage. Rural coöperation in Europe is more than half a century old.

Probably the best known example of the success of rural coöperation is found in Denmark. Much has been written about the wonderful transformation wrought in that country by union of effort among her farmers. Coöperation has been one of the most essential factors by which

the people of Denmark have rescued themselves from a condition of extreme economic distress and attained a prosperity which, considering Denmark's limited natural resources, is most remarkable, it is due chiefly to this that Denmark has more wealth per capita than any other country in Europe.

In Italy, the business of the Federation of Coöperative Agricultural Associations has grown since 1895 not less than 43 per cent. in any five year period, while the number of its agricultural societies grew from 1892 to 1910 no less than ten-fold. The business of its coöperative credit institutions more than doubled in the four-year period from 1908 to 1912.

The movement has also been successful in Hungary. In 1912 there were 8,000 parishes into which the activities of coöperative societies extended. Up to the outbreak of the war coöperation had also made great progress in Belgium, while in Holland the coöperative idea has been making leaps and bounds during the past ten years. Here, as in other countries, including Austria, Russia, France, and Switzerland, it has been demonstrated that coöperation is a necessary condition of general agricultural prosperity.

But Germany affords the best example of agricultural coöperation on a large scale. In the twenty-year period from 1890 to 1910 the number of German coöperative agricultural societies grew from 3,000 to 25,000. From 1892 to 1908 the membership of coöperative societies for collective purposes grew from 12,000 to 213,000, and the membership of coöperative dairy societies from 51,500 to more than 1,250,000. Mr. Gill remarks: "It is due to coöperation more than to any other one thing that Germany has been able to increase her agricultural productivity fifty per cent. in fifty years, until now, though smaller in area than our state of Texas, it produces 95 per cent. of the food of 66,000,000 people."

Thus it will be seen that agricultural coöperation has worked well both in small countries and in great. The good results have been incalculably great especially among the poor farmers. It has emancipated them from the usurer. In many places the small farmers had never known freedom from oppressive creditors until the founding of rural coöperative institutions. By capitalizing the common honesty of the poor, coöperation has secured for the small farmer, at the lowest rates of interest, money to be used by him in his necessary operations. Agricultural coöperation in distribution has enabled the farmer to work for his own support instead of for the support of

a large number of superfluous distributors. Before the introduction of coöperation the small farmer had been forced to buy inferior goods at high prices and to sell his products at prices unreasonably low. But coöperation changed all this. It enabled the small farmer to place himself on the level with the large farmer in producing articles of good quality, as well as in the matter of prices received for them; also to obtain goods of guaranteed quality at moderate prices. Thus while coöperation has promoted efficiency on the farm, it has also secured the farmer freedom in the market, and has contributed to the higher life of the home.

So it is not alone in material betterment that coöperation has blessed the farmers. It has done a great work in promoting education; in launching benevolent enterprises for members; in enriching the rural social life. The coöperative societies have made grants to village libraries, organized circles for reading and acting, and established evening clubs. They have also appointed local cattle shows and regular meetings in which instructive lectures on coöperation, agriculture and other topics are delivered. They have formed gymnastic societies and bathing establishments, cattle and poultry breeding societies, local nursing centres, infant aid associations, anti-consumption leagues, and engaged in a great variety of other good works.

The recreational and educational buildings are paid for and managed by the people. Consequently the people get what they want and make use of what they get. The coöperative buildings become the most complete social-centre houses in existence. Each building is a kind of club for men, women and children where they spend their leisure hours and become acquainted and neighborly.

Nor is this the whole benefit. It has been observed that coöperation has had a marked effect in the promotion of thrift and morals and temperance. The coöperator as a rule gets out of debt and begins to save. This increases his independence and self-respect. The closer association with his neighbors puts him more upon his good behavior. Many a hard drinking laborer has, under such influences, quit his evil habits and rescued his family from wretchedness. All this naturally leads to an increase of honesty and business integrity. Where there is a small rural coöperative credit society a person cannot borrow from it unless he has acquired a reputation for reliability. As a consequence a loan comes as a certificate of character, while the refusal of

a loan may well lead the would-be borrower to serious reflection. As a result people come to care more for their reputation in their dealings with one another. Honesty comes to be an essential quality in business efficiency.

Another all-powerful influence of coöperation is found in the promotion of democracy. The coöperative movement is essentially democratic in origin. Success can be attained only by equality of opportunity, mutual consideration and fair treatment. This naturally promotes political efficiency also, because the education and the closer association found in coöperation lead each individual to realize his responsibility and to endeavor to use his voting power intelligently and wisely.

The effect in the promotion of Peace, Brotherhood, and Religion, is thus indicated in the report: "It was observed by members of the American Commission that in nearly all the European countries the great body of the coöperators, especially among the leaders, think of agricultural coöperation as a sort of social reform and in some cases almost as a religion. The admirable moral and social results are recognized everywhere. Not only has it taught illiterate men to read, made dissipated men sober, careless men thrifty, and dishonest men square, but it has made friends of neighbors who had been enemies, while estrangement among men on account of religious antipathies and the inheritance of ancient feuds have yielded to its influence and disappeared. It could scarcely be expected that a movement with such beneficial results could have been inaugurated and successfully furthered apart from close association with the Christian churches. In many of the coöperative enterprises the clergymen have played an important part. The sympathetic participation in and promotion of the coöperative movement on the part of the church is a logical and almost necessary result of the existence of a movement of such a character, since many of the ends for which the church is striving are effectually accomplished by coöperative institutions while these institutions, in their purposes and endeavors, necessarily command the sympathy and allegiance of every sincere and disinterested churchman."

It would be well if an exhaustive report of this kind could be made upon the social effects of rural coöperation in the United States. We know that the coöperative movement has made some progress in this country, but in comparatively few localities has it assumed the comprehensiveness and thoroughness which has characterized it in Denmark and Germany.

Coöperative movements are not unknown to the cities, but in a business way there is far more need for them in the rural districts, for the population of those districts is more scattered and the farmer, when working alone, is more helpless in the face of combinations that may be formed against him. A great many instances have come to public knowledge where the farmer has received very inadequate prices for his products while the consumer in the cities has at the same time been compelled to pay prices which appear extortionate. Who has not heard of the farmers' apples rotting on the ground because he could not afford to market them at the price offered, while the consumer has at the same time complained that his apples were costing him too much? This is at times true of a great many products. Farmers usually sell in competition with each other, at the wholesale price, and buy what they need at the retail price. Before the days of coöperation the Denmark farmer was as a rule wretchedly poor; but when he joined with his neighbors and they appointed a selling agent in London, who guaranteed quality of product, he began to obtain the best London prices, to secure cheaper transportation rates and also saved the commissions formerly paid to a number of middle men. His agents in London and other cities also bought goods for distribution among the coöperative farmers at wholesale prices.

In our middle western states the coöperative movement started first with coöperative creameries, many of which proved very successful. In some rural districts the farmers are organized and have provided warehouse facilities for storing their surplus products until a satisfactory market can be obtained, and have learned to sell and buy through their own agents. In such communities the farmers are thrifty and prosperous, and their social life and activities makes the country as desirable a place of residence, so far as that is concerned, as the neighboring cities—and in some respects much more so. There is no reason why the American farmers and rural dwellers cannot profit as largely by coöperation as the people of any part of Europe. The chief economic problem of any country is proper distribution of products and labor. With a proper distribution of labor there would not be the congestion that often makes the unemployment problem so serious in some districts, and there would not be the inequality of reward for industry that makes some too rich and the large masses too poor. The rural communities are the backbone of the nation's prosperity. All the wealth comes primarily from the land.

THE MOBILIZATION OF PUBLIC OPINION

BY
JOHN EDWARD OSTER

At present the question that is most prominent before the world is that of peace. Almost everybody whom we meet has some opinion regarding this question which he is ready to express. How has this opinion been formed? It is certainly true that very, very few have thought carefully over this question, or have studied it in a fair unbiased manner. There are wide differences of opinion, and without the slightest doubt there are very good and legitimate reasons for these wide differences. They arise chiefly, perhaps, because of different local circumstances affecting educational conditions, or the conditions of influential classes of society, and a thousand and one other reasons, which may carry more or less weight.

Practically every family has members who were more than once directly affected by the absence of peace—war, and have wished for peace, or without knowing it, had the pacifist spirit. Almost every person is likely to feel a sense of deep injury under the pressure of an unpleasant burden, and naturally thinks the issue or whatever it is must be fought out with iron and blood. An opinion of some kind is there, which is made up mostly of sentiment, based upon a somewhat erroneous knowledge of some few facts in the situation. No matter which side of the fence individuals are on, they have gained their ideas mostly from newspapers, or from chance talks here and there, with men whom they believe, in most instances to be much better informed than themselves, consequently they are using the same source of information in most instances, and conviction is simply deepened by a constant repetition of the thought.

Again, most people form their opinions and judgments without due examination; they have a leaning toward one side of the question from other considerations than those belonging to it; and many have an unreasonable predilection toward the militaristic idea thinking that the pacifist stands for weakness and possesses cowardly spirit. The minds of many are biased on account of the vigorous propaganda carried out by the militarists in the form of large armaments, and international tangles, war scares and many other things which make international peace appear as an utter impossibility.

It has been said that the first and most practical step in obtaining what one wants in this world, is wanting it. Naturally a person would think that the next step would be expressing what one wants, but usually consists in wanting it still more and more until one can well express it. This is particularly true when the thing a person wants is something which concerns the whole world, for here all these other individuals who must be asked perhaps have but a very slight interest in what one wants. Until a large number desire a thing strong enough, and wish for it hard enough to say it, and get it outside of themselves, and perhaps make it contagious so that the thought will be catching to every person exposed to it, nothing happens at all.

Every man who, in some public place, like a book, paints the picture of his heart's desire, and who throws forth as upon a screen where all men may see them his most immediate and pressing ideals, performs a very important service to humanity. If a man's sole interest were to find out what all men living in the world to-day, need and want most, and what is necessary for their welfare, the best and only way for him to do it, would be for him to write clearly, and quite definitely so that we could all compare notes, on exactly what he wanted himself.

The thing that the populations of the earth want and need as a whole in this darkness and din of the world is safety and security in the pursuits of life, liberty, and happiness. Too many persons, with a pugnacious tenacity, cling to the idea that world peace is an idle and futile dream. Even so, nothing is more visionary, than trying to run a world without dreams, especially an economic world such as the one we live on. It is because even bad dreams are better on this foot stool than having no dreams at all, that so called bad people are in a wholesale measure allowed to run it. The one

factor in economics to be reckoned with in the final and practical sense, is the desire to do right. An ideal to be sure, but at some time or other, it was an ideal that aroused the wrong passions, and now it is only another corrective ideal that will arouse the right passion. The next step by our political economists is the statement of a shrewd, dogged, realizable ideal, and that is *universal peace between nations*.

The great upheavals which precede changes of civilization, such as the fall of the Roman Empire and the foundation of the Arabian Empire, seem at first sight determined more especially by political transformations, foreign invasions, or the annihilation and overthrow of dynasties. A more attentive study of these events shows that behind their apparent causes, the real cause, as a rule, is seen to be, a modification in the opinions of the populations. The true historical upheavals are not those which compel astonishment by their spectacularity, and impetuous violence, and vehemence. The only important changes whence the renewal of civilization is a resultant, affects ideas, opinions and beliefs.

The landmarks of history are the visible effects of the invisible changes of human opinion, and the reason these great memorable events are so rare, is, because there is nothing so stable in a race, as the inherited groundwork, and fundamental foundation of its opinions. The present epoch, without a doubt, is one of these critical times, in which the opinion of mankind, is undergoing a great transformation.

There are two fundamental factors at the bottom of this transformation. The first, caused by the wholesale destruction of life and property, which shakes to pieces the political and social beliefs in which all the elements of our civilization are rooted. The second is the creation of entirely new conditions of existence of thought as the result of multitudinous scientific, modern, and industrial discoveries. The opinions of the past, although half destroyed, being still very powerful, as the present state of militarism proves, and the opinions which are to replace them, being still in a process of transformation, the present age represents a period of transition and political confusion.

As yet, we cannot say exactly what will be evolved some day from this necessarily somewhat chaotic period. What will be the fundamental ideas on which the societies that are to succeed our own, will be built up? At present, there is no manner of knowing. It is perfectly clear, that the

societies of the future will have to reckon with a new power, and that power is public opinion. On the ruins of so many ideas formerly considered beyond discussion, and now either dead or dying, of so many sources of authority that successive revolutions have destroyed, this power, which alone has arisen in their stead seems soon destined to absorb the others. While practically all of our ancient beliefs are tottering and disappearing, while the old pillars of society are giving way, one by one, the power of public opinion is the only force that is growing, and of which the prestige is steadily and continually on the increase. The age we are about to enter, will, in truth, be governed by public opinion.

Less than a century ago the traditional policy of European States and the rivalries of sovereigns were the principal factors that shaped events, consequently the opinion of the masses did not count, and was scarcely noticed. To-day the opposite state of affairs predominates, and it is the traditions which used to obtain in politics, and the individual tendencies and rivalries of rulers, which are counting for less and less; while, on the contrary, the voice of the people has become preponderant. It is this voice that dictates their conduct to rulers, whose endeavor it is, to take notice of its utterances.

Practically all the world's masters, all the founders of religions or empires, the apostles of all beliefs, eminent statesmen, and in a more modest sphere, the mere chiefs of small groups of men have always been unconscious psychologists, possessed of an instinctive and often very scientific knowledge of the character of public opinion. It was mostly this accurate knowledge that enabled them so easily to establish their complete mastery as was so often done.

Napoleon had a marvellous insight into the public opinion of the country over which he reigned, but he, at times, completely misunderstood it, and overshot the mark, and as a rule completely misunderstood the public opinion of other nations. It was because he misunderstood it that he engaged in Spain, and notably in Russia, in conflicts in which his power received blows, which were destined within a brief period of time to ruin it. Neither did the most subtle advisers of Napoleon understand public opinion, as they should have done, for Talleyrand wrote him, that: "Spain would receive his soldiers as Liberators." The real truth of the matter was, that it

received them as beasts of prey. A slight acquaintance with public opinion in that case would have easily foreseen this reception.

Public opinion rules and is practically as unattackable as our religious ideas were in the Middle Ages. Imagine a modern free thinker translated into those days of the Middle Ages. Can you think that, after having ascertained the sovereign power of the religious opinion that was then in force, that he would have been tempted to attack it? Having fallen into the hands of a judge disposed to have him burned at the stake, under the imputation of having concluded a pact with the Devil, or of having participated in the Witches' Sabbath, would it have occurred to him to dispute the existence of the Devil or of the Witches' Sabbath? It were as wise to oppose a cyclone with discussion as public opinion, which is a slow growth and gradually comes from within, or, in other words, is the product of education.

As a consequence of the slowness of the movement of the psychological characteristics of races, great stability and fixity, which prevents the overthrow of the equilibrium of races, and their works, is the result. Only in the long run, and by slow hereditary accumulations, is it possible for the psychological and the anatomical elements of the human species to be transformed. The evolution of civilization depends wholly on these transformations.

Public opinion is often made by prominent factors, such as wants, the struggle for life, the action of certain surroundings, the progress of industry and the sciences, education facilities, wars, etc. Ideas do not become public opinion, until, as the consequence of a very slow elaboration, they have descended from the mobile regions of thought, to that stable, and unconscious region of the sentiments, in which the motives of our intentions are elaborated. They then become elements of character and begin to influence conduct. It is this line up of unconscious ideas, that give us character. The idea of international Peace, has been at work for several generations, and on account of the slowness of our mental transformations, many generations of men are needed to secure the triumph of new ideas, and many generations are necessary to cause old ideas to disappear. During the Middle Ages, there were two principal ideas: Religious and feudal. Its arts, literature and whole conception of life were derived from these ideas, until the time of the Renaissance when they began to change; and also the

conception of life, the arts and literature underwent an entire transformation.

No matter what the nature of the ideas may be, whether scientific, artistic, philosophic, or religious, the mechanism of its propagation remains identically the same. With International Peace, it is the same, and must first be adopted, as has been done, by a small number of apostles, the intensity of whose faith and the authority of whose names give great prestige. As soon as these apostles succeed in convincing a small circle of adepts and thus form new apostles, the new idea enters into the domain of discussion, where it first arouses universal opposition, because it necessarily clashes with much that is very old and well established. The apostles who defend it are naturally greatly excited by the opposition, which causes them to defend the new idea with energy and diligence. The new idea becomes more and more a subject of discussion, and of course is entirely accepted by the one side and entirely rejected by the other side, with almost as much vehemence. These impassioned debates help the progress of the idea very materially, and it keeps going and going, and the new generations who find it controverted tend to adopt it merely because it is a progressive measure, and because young people, always eager to be independent, find wholesale opposition to old ideas to be the most accessible form of originality.

Consequently, the new idea continues to gain in strength, and finally it does not need any more support, and spreads everywhere by the mere effect of imitation, acting with contagion, a faculty with which humans are very heavily endowed. Just as soon as the mechanism of contagion intervenes, the idea enters on the phase which necessarily signifies ultimate success, and it then becomes public opinion, and takes on a penetrating and subtle force, which spreads it progressively among all intellects, creating simultaneously a sort of special receptive atmosphere or a general manner of thinking. Like the fine dust of the prairie, which penetrates everywhere, it finds its way into the interior of all the conceptions, and all the productions of an epoch, and the idea and its consequences, then form part of that compact stock of hereditary commonplaces loaded on us by education. Thus the idea has triumphed, and has entered the domain of public opinion, where it has nothing to fear.

The Seventeenth Amendment to the United States Constitution is a fine example of the reception accorded an idea by public opinion as I have

illustrated above. For seventy years the apostles of the political doctrine that the direct election of United States Senators by the people is best for them, kept hammering away with their arguments, until it was finally adopted as an amendment to the Constitution. The object of most arguments are at first abhorred, finally endured, and eventually embraced.

The idea of International Peace like the Seventeenth Amendment, has practically run its prescribed course for adoption. It has reached the point where progress is rapid. Of the various ideas which guide a civilization, some rest confined with the upper grades of the nation, while others go deep down among the population. As a rule they arrive there much deformed, but, when they do arrive there, the power they exert over primitive minds incapable of much reasoning is wonderfully large. Under such conditions the idea represents something that is practically invincible, and its efforts are hurled forward with violence analagous to a stream that has overflown its banks. There are always hundreds of thousands of men in a nation of the larger sort who are ready to risk their lives to defend an idea as soon as this idea has actually convinced or subjugated them.

International Peace has been talked and discussed for so many years, that the time is now ripe for it to be inaugurated as part of the international law of the world.

OUR NATIONAL STAGE-FRIGHT

BY
EDWARD F. MURPHY

Quite recently our country was merely a pupil at the Hague, a student of the Science of Peace. In her studies she manifested a little more zest, and evidently progressed much more rapidly than her companions. For, when a very significant test came from Mexico, she passed the examination gloriously. Her answer to the great Mexican question was implicitly this: no matter how great a grievance may be, it is less a grievance than war, since war includes all grievances. The world admired her wisdom. The Hague smiled approval.

True, to preserve peace with Mexico, we had to leave Mexico at war with herself. The malodorous moral vapors from that civil seethe are still filling our country with nausea. But if we allow our laudable and just indignation to be tempered with reflection, we shall have to confess that war would only enrage our illiterate neighbors to even grosser excesses; at best, could finally quell their restlessness for only a time; at worst, would create for us more difficulties than it would solve. Besides, to add to Mexico's crimes the ravages of our weapons would be to increase the world's woes; to increase them at a time when all hell seems to be conspiring against the human race. Grievances, better than anything else, bear postponement. They are proved by the test of time. If real, they endure.

Mexico is now in the throes of liberty-birth. She is painfully working out her destiny, just as we and other nations have done before her. She has a right to be let alone. There will be time enough for us to settle with her when she has settled with herself. There is honor for us in the waiting. In

the interim, humanity, the universal law, demands that we do our diplomatic and charitable utmost to win the innocent sufferers in Mexico from torment.

Our country's attitude toward Mexico has won for her a unique distinction. From pupil, she has become teacher of peace. Europe's agonized eyes are now appealingly fixed on her. Naturally, such a sudden and unexpected elevation has somewhat dazed her. She doubts that her voice will be heard, or, if heard, be heeded, in the unearthly clangor of arms. She is apprehensive that stray shots from the war-zone may ricochet across the Atlantic and inflict wounds upon her which it would be dishonor not to redress. This nervousness, forsooth, is a kind of stage-fright. She is much like a player, possessed of all such requisites as talent, memory, and trappings, but timorous of throat difficulties and gallery missiles at the première.

We are a people of energy, hence of nerves, hence of imagination, hence of fears. But let us compose ourselves. Poor performers are deservedly criticized. The world is our audience; it is expecting great things; shall we give it disappointment? No, of course not! But are we not making a bad début?

Comes a murmur from all sides the regular army and the navy should be augmented. Those who dare say nay are forthwith stigmatized as madmen. At the outbreak of the European War, however, armaments were acknowledged by everyone as the cause of the conflict. But now it seems that belligerency has so heated our blood that cool reason has been boiled out of our heads. Facts, nevertheless, remain; even though our opinions and sentiments have changed. Whether we at present care to consider it or not, it is a sorry truth that Europe's armies have rendered the Hague helpless and inaugurated an era of horrors.

And now, must we, the only nation influential enough to champion Peace, genuflect to Mars?

Notwithstanding the lively jeers of militaristic scribes, the statement stands that the possession of weapons is the strongest stimulus to their use. Germany armed to the teeth, felt too puissant for Peace; too easily she found a cause for war: the world weeps. Experience is the queen of instructors; but do her pupils always learn? Mammoth calamities have testified, and are at this moment witnessing, that martial means to avert trouble draw down on men their greatest sorrows. They have caused History

to be couched with a sword-point and blood. The nations across the sea are now madly struggling for life, although up to a few months ago, they were cheerfully and blindly making ready for death,—creating the instruments with which to slay one another. Are we, who should be wise with a firm realization of their lack of wisdom, about to be false to our national policy and follow the unhappiest of examples? If the defects of our present national defence speak to foreign countries of our weakness, an increase of militia would indicate military design. A reputation for bellicoseness, fully as much as for impotence, invites complications. Martial rivalry, suspicions, and jealousies are the recipe for disaster.

With military combustibles in perfect order, a tiny spark from Servia set Europe on fire. If we similarly prepare for disaster, the slightest of grievances will serve to prepare disaster for us. Indeed, even with our present limited army, many of us wax perkily indignant, defiant, and menaceful over sundry occurrences. Some hotly mumble that the Tennessee incident is not yet settled; though, in truth, it is difficult, in cool consideration, to establish any reason for continued heat. Others with flashing eye, grumble over the alleged maltreatment of Americans in the belligerent countries; though all United States citizens were bidden home at the very beginning of the contest, and were given every reasonable means of conveyance. Which facts assuredly stamp the troubles of those who have deliberately remained abroad as personal and not national affairs. The moral is this: if, without an adequate national weapon of defence, we are inclined to take such haughty umbrage upon such inferior provocation, how much greater and dangerous will be our resentments, when we are animated with the confidence inspired by an ample military array!

In these turbulent days, when some excuse for war is encountered at almost every turn, the consciousness of unpreparedness is our greatest defense. Our weakness is our salvation. If we clothe ourselves with strength, there is little doubt that certain noisy newspapers which, despite the President's express wishes, are even now doing their subtle best to stir up mischief, will goad us on to a proof of that strength. God only knows where we shall be, if we forge for ourselves the grim means to get there! And, if the war-god finds homage in the United States, the only remaining powerful luminary of Peace will have set. The world will be enveloped with affliction. Chaos will reign.

But why do we fear the possible advent of turmoil? It is quite improbable. Shackled with a thousand problems and interests of her own, Europe could not harm us, even if she would. Far from desiring to hurt us, however, she seeks to be helped by us. Ours is a sacred trust. Peace and plenty are our charge. While the terrible conflict rages, we can mitigate its ravages. When it closes, we shall have the moral and material wherewith to revive and cure a maimed and bleeding continent. Shall we be such traitors to humanity as to adopt measures which may imperil that trust?

Perchance we sniff complications with Japan. Yet we have received diplomatic assurances from that quarter which should leave us reasonably easy. But if our sense of prudence is so strong that we must provide for emergencies, let us cast about for means which do not spell danger. We shall not have to look far, nor ponder much. For securing our country against future catastrophe, there is an obvious method, much cheaper, more effective, and less jeopardous than army-building. It is simply a promotion of that principle whose presence is really the cause of Germany's greatness and whose decay is the most ominous of England's menaces: national spirit. Let us not posit the safety of our country in the hands of 120,000 paid soldiers. As patriots, each and every one of us should keep the precious spirit of the nation aglow in his own breast. Then, if disaster threatens, we shall meet it in a phalanx against which it can but patter in vain. Millions, armed with disinterested love of country, are much more mighty than thousands, equipped with perfunctory training, brand new guns, and nicely burnished swords. For, the security of our land is in ourselves, not in our army. When the Spanish-American War burst upon us, we were, so far as militia goes, unprepared, but, in point of national spirit, we were practically a unit. Like magic, unity made soldiery appear. The call for volunteers was answered by many more than could be accommodated. If we are now as united as we were then, why are we fearfully clutching about for new defences? If we are not, let us earnestly endeavor to be. The condition of England is a darkly significant example to spur us on. In her hour of greatest trial, those on whom she chiefly relies for sustenance, her seamen, have leapt at her throat, demanding what she is ill able to give. They fervidly argue that their increased risks should and must be renumerated with increased salaries. They prefer a fat pay-roll to their country's welfare. Much will England's vast navy and great army avail her, if her children thus fall away from her best interest and from each other. Heaven forbid that any

similar division should obtain in America during time of public distress! To prepare against it, is by far more prudent, serviceable, and necessary, than to rear armies.

In fine, let us not insult the Peace with which our land is blessed, by presenting it with arms!

THE WAR STATE

BY
WINTER RUSSELL

The war state stands before us to-day proud and unafraid. It is however self-conscious. To use the figures and similes of Carlisle in his “Characteristics” like Doctor Kitchener, it has a good system. It is not like the Indian war state that knew no other kind of state and therefore didn’t realize that it had a system nor was it like Countryman and “had no system.” The war state to-day has a system and it glories in it. Its rules are God’s laws and man’s vices and crimes are its virtues. It knows its purposes which it says are divine.

Those purposes are first to secure order within, second to make war without. It might almost say that its purpose is to make war without. In no sense of the word does it make war without so that it can keep order within. Its purpose therefore is to make war for it keeps order within so it can better make war without. It might almost say, in fact, it does say that if it did not make war it would have no right to exist. If it doesn’t make war better than another it has no right to exist. It makes war that it may grow, that it may develop, that it may progress, that it may enlarge itself. It ceases from war for the time being only that it may prepare to make war again. War is its health, its vocation. Its provisional peace is its novitiate, its apprenticeship, its years of training. Should it cease to grow and enlarge itself, it would thereby cease to be healthy and true to its main purpose.

An axiom with many people is that the truth or falsity of many if not all contentions can be found by magnifying them or trying to make them universal. If the contention of the world state is valid this axiom would seem to have found its Waterloo, for it is obvious that if the perfect war

state is ever achieved it must constantly grow, it must extend its boundaries continuously. When the war state shall have reached its zenith it will fall into the inevitable decay and degeneration that comes with peace, unless it should divide the World state up into tiny and imperfect war states and begin over again the centuries which were spent in warfare, to see from which centre of the globe the new war state shall spread itself. For it is apparent that since war is necessary, a world of peace would almost be worse than no world at all.

If wars cannot come with the inevitableness with which astute ministers try to clothe them they must be consciously and openly caused merely for the sake of having war.

It may be said and it indeed often is that such a conclusion is impossible, that no constantly growing war state can evolve. War's spokesmen say that power too widespread places the beneficent uses of conflict beyond the reach of the majority of such a state and malign peace causes inner decay. Eternal bloodshed it would appear is the price of national health. And several hostile war states must forever rock progress in its crimson cradle.

This presents to us the other horn of the logical dilemma. All states owe it to themselves and to the world to become thoroughly militarized. Hatred and rivalry must be constantly cherished. Socialism's dream of an international brotherhood that has beguiled the hearts of many who fear most of its other principles is indeed only a dream to be dispelled when the State's real function is exercised.

Iron, hinting its own scarcity, must be primarily used for Busy Berthas, submarines and breast piercers. Motor trucks which it was hoped were to be the disseminators of food and strength are to become the swift germs of international disease.

Much of the ever-growing spring of inventive geniuses must be turned from its natural channel of construction to flow through the ways of death and destruction. The works we glory in in times of peace must become the enemies of life. Ships that float upon the bosom of the air deal their horrible and flaming shafts. The dove-like aeroplane becomes the eye of the army dragon.

War states shall build this commerce but to destroy it as children knock down their toy houses. Philanthropists shall attempt to soften and heal the

sore spots of society but to see the nations' statesmen tear and rend the living flesh, leaving ulcers that cannot close for years.

The war state of course has satisfactory reasons for making war for growth and development. It must make war to spread its civilization and destroy other civilizations. There could be no concert or symphony of civilizations properly speaking. Civilizations serve their purposes only as they die and pass away. The myriads of philanthropists, social workers, statesmen and jurists in various states that have not received the gospel of war are not building for all time. They are building primarily to render more glorious the victory of the war state. Artists that create, architects that build are only making structures whose rôle in man's history is to be noble ruins.

Physicians and scientists shall study man's body, make warfare upon his unseen enemies, plan and plot the life of health, spend years in study and research, that they may save a few from the plagues of typhoid, of pneumonia, consumption and the other afflictions of man's body only to see man's latest death dealing toy destroy in seconds the healthful tissues it has taken years to build. They shall see their systems of sanitation and hygiene fall like a phantom castle in the air. Disorder, rapine and lust shall spread more disease than health boards could cure or prevent in a decade, and last of all they shall find themselves marshalled and arrayed as one of the brigades in the cohorts of death.

The students of sociology and of economic reform will plan and contrive systems of life that shall create and preserve the rights and property of all only to see them swept away as the tidal wave sweeps away a city in its ruthless coming on. Education realizing as it does that its purpose is not only to instruct but to nourish and tutor the soul, to win the mind to love and inspiring thoughts, sees its gentle years made worse than wasted by the hours of passion and hatred that lengthen into weeks, months and years of war. It sees its histories made hateful and horrid with the tales of grief and death. Seeking in some small way to assist the church in its work of winning love for one's neighbor, it has to place upon its shelves the stories that engender hate and fear. Not the good things that our neighbors have done us but the ill that we have done to them and they have done to us are made the subject of story and glory. Art is conscripted to herald forth the might, majesty and mystery of hell, caparisoned in all the trappings of death's glitter and brandishing the latest implement of pain. Poetry's sweet

notes become rasping and strident as they reiterate the tales that should only be told or sung by the furies and witches of Hades.

Two thousand years ago we were told that no man could serve two masters and yet the apologists of war tell us with astounding frankness that the morals of the state and of the individual not only can but should be different. Man can at the behest of state, wound, maim, tear, and kill, he may commit rape, robbery, arson and murder and yet be virtuous. He can do this and still be expected to go back to his home and be as noble and loved a rational creature as he was before. While he is doing this and spreading misery, those whom he has left behind for a time or forever are also ennobled and inspired and those to whom he comes, whose villages are crushed by shot and shell and rendered a flaming sacrifice on the altar of war, are taught the power of godlike soldiers. The time will come, however, when we shall realize that man cannot serve not only God and Mammon but he cannot serve God and Mars. Who knows but we are simply awaiting the scientist who shall show the unerring and uninterrupted flood from the horrors of war to the criminal years of peace. The seeds that we sow in the years of hatred and pain bring forth the fruit that fill our prisons and render our normal life so fretful and feverish.

The war state tells its people to forgive and forget, to coöperate, to sacrifice, to be unselfish and yet it says to its people: "You as a unit shall not coöperate, you shall fight, you shall not forgive and forget, you shall cherish revenge and nourish the passion to retaliate. You shall not as a people make sacrifices, you shall take from others and make others sacrifice." Either Mars or God, must and will at length prevail. The world cannot forever serve them both.

The war state is to its neighbor as the robber is to the unprepared banker. The war state says: "You have had years to prepare for war and you have not prepared. You have put your strength to the uses and arts of peace, you have developed the mind and the spirit of your people and since you have neglected its iron body you must render tribute unto me." So a robber might say to a bank president: "You have had time to build your vault of steel and install your burglar alarms yet you have not prepared and I have come with my revolver and lantern to deprive you of your well earned gain. I shall deprive you even of the earnings of the poor that have been entrusted to you, for might makes right and force is the power that rules the world." The

pugilist might as well say to the college president: "You have had years to develop your muscles, and to perfect yourself in the art of fisticuff and self-defense and you have neglected it, therefore I shall assume your position and if you like it not I shall give you a knockout blow and drag you from your college office."

A world of harmony, a world that shall in truth know the music of the spheres will not be known until it becomes a world of forgiveness, of international coöperation and sacrifice. As difficult as it was and long as it took, the modest forgiveness that has marked the relations of the North and South and the wholeness that has blessed that forgiveness and coöperation is an unquestionable witness to the virtue and necessity of applying to peoples and states the same virtues and the same ethics that we apply one to another. We have got to limit not only the war state but the war man. We have got to realize that not only as individuals but as states, we are all members one of another. Nationalism is in its best sense, a virtue just as individualism is in its best sense a virtue. The individual should give to the world the best that is in him and so should the state, but no more can a state give it by making war than can a man by being an enemy of his fellows.

Much of the nationalism that we hear about is worse than useless because it engenders hatred and nourishes pride. Who to-day thinks that Hayne's ideal was higher than Webster's? What is there in being a South Carolinian, or of the State of Massachusetts, so important as being a citizen of the United States or what is there about being a citizen of the United States so glorious as being a brother of all mankind?

**PEACE THROUGH ECONOMIC PRESSURE
HOW COMMERCE CAN BE AN EFFECTIVE FORCE
BEHIND THE WORLD COURT—ADDRESS DELIVERED
BEFORE THE WORLD COURT CONGRESS IN
CLEVELAND ON MAY 14TH**

BY
HERBERT S. HOUSTON
DELEGATE TO THE CONGRESS FROM
THE CHAMBER OF COMMERCE OF THE UNITED STATES

The President of the United States has spoken in strong, sane words, in the message to Germany published this morning, and the country will be behind him and with him to a man. In the clear logic of a great mind the distinction is made that no agency of warfare should be employed that, by its own limitations, cannot respect the accepted rules of war. That argument I believe will be accepted by the neutral nations and ultimately by the world. In effect, it is a declaration that if there is to be war it must be conducted according to the rules of the game, according to the rules and limitations which Germany and the other nations of the world have set up through the centuries.

TO ESTABLISH A WORLD COURT

But, gentlemen, this Congress stands for a bigger thing than the rules of war—it stands for the rules of peace. It represents a serious endeavor to establish a World Court that shall ultimately bring about the end of war. The thing that has struck me in this Congress from the opening day is its upright downright seriousness. It is essentially a Congress of ways and means. The desirability of peace, the absolute necessity of peace in a world that claims to be civilized is taken for granted—no one discusses it. What everyone is discussing instead is a sane, wise plan of securing peace. Ex-President Taft in his unusually able state-paper has proposed a plan for a World Court; Judge Parker has endorsed it in his address; a great banker like Emerson McMillan has outlined a plan by which the members of such a Court can be chosen; William Dudley Foulke in his scholarly paper last night proposed a plan of orderly progress for a League of the Nations, following the analogy of our own Confederation and our own Constitution; and James Brown Scott, in the able address we have just heard this morning, has pointed out the present status of the Hague Tribunal and shown how we can go forward from the point of great accomplishment that the world has already reached.

THE FORCE TO PUT BEHIND THE COURT

In much of this discussion reference has been made to the power to put behind a World Court in order to make it effective. Now I wish to speak briefly of economic pressure as the most truly international force and as the most efficient possible force to put behind this proposed World Court. That great leader and teacher of Ohio and the country, Dr. Washington Gladden, said to me yesterday, "The world on the old basis is bankrupt. It must be reorganized on a new basis." Appreciation of that fact, it seems to me, is the chief significance of this Congress. And the world can be reorganized on a new basis if it will avail itself of one of its greatest forces, the force of international commerce, which can be applied as economic pressure to establish justice and to serve civilization.

GREAT POWER OF ECONOMIC PRESSURE

Let us briefly examine economic pressure. Of what does it consist and how could it be applied? The most effective factors in world-wide economic pressure, such as would be required to compel nations to take justiciable issues to a World Court for decision and to submit to its decrees, are a group of international forces. To-day money is international because in all civilized countries it has gold as the common basis. Credit based on gold is international. Commerce based on money and on credit is international. Then the amazing network of agencies by which money and credit and commerce are employed in the world are also international. Take the stock exchanges, the cables, the wireless, the international postal service and the wonderful modern facilities for communication and inter-communication—all these are international forces. They are common to all nations. In the truest sense they are independent of race, of language, of religion, of culture, of government and of every other human limitation. That is one of their chief merits in making them the most effective possible power, used in the form of economic pressure to put behind a World Court.

INTERNATIONAL CLEARING HOUSE PROPOSED

Business to-day is really the great organized life of the world. The agencies through which it is carried forward have created such a maze of interrelations that each nation must depend on all the others. A great Chicago banker, John J. Arnold, Vice-President of the First National Bank of that city, said to me this week that so closely drawn and interwoven had become the economic net in which the world was immeshed that if the great war could have been postponed four or five years it would never have swept down upon men like a thunderbolt of destruction. As an additional strand of great strength in the warp and woof of modern progress, Mr. Arnold believes that an International Clearing House will come—in fact that it is an inevitable development in international finance. It was my privilege to hear him make a notable address before the last meeting of the American Investment Bankers' Association in Philadelphia in which he proposed such a Clearing House for settling balances between nations, just as our modern Clearing Houses now settle balances between Banks in cities in which they are located. Beyond question such an International Clearing House, when established, would quickly become an invaluable auxiliary to a World Court, helping to give it stability and serving, when occasion arose, as a mighty agency through which economic pressure could be applied.

And I believe Mr. Arnold is right in his view that an International Clearing House is bound to come. Business, finance and commerce are now so truly international that there is a manifest need of it. As a strong proof of this let me remind you that when this war broke, forty per cent. of the securities of the world were held internationally.

HOW ENGLAND AND FRANCE PREVENTED WARS

Now economic pressure is not a new thing in the world. It has been used before by one nation against another and usually with tremendous effectiveness. When Philip was organizing the great armada the merchants of London persuaded the merchants of Genoa to withhold credit and moneys from the Spanish King. The result was that the armada was delayed for over a year, and then the English were prepared to meet the shock. What could be done three centuries ago for a year to delay a Power so great as Spain then was could be done in this century far more effectively. And it has been employed in this century. When the German Emperor dispatched the gunboat to Agadir bringing on the acute crisis with France, I happened to be in Paris. On the fourth day of the crisis I was having luncheon at the Grand Hotel with a young French banker of the Credit Lyonnais. I remarked on the fact that the crisis was becoming less acute and inquired the reason. "We are withdrawing our French investments from Germany," was the rejoinder, "and that economic pressure is relieving the situation." As we all know, it not only relieved the situation but it served as a definite means to prevent a war that seemed imminent. Now I submit that a force which England could use against Spain in the Sixteenth Century and that France could use against Germany in the Twentieth Century—in each case let me remind you a single nation was applying force against another single nation and that nation its enemy—I submit that that force can be applied by all nations collectively against another nation that refuses to settle in a World Court a justiciable issue.

THREE WAYS TO APPLY ECONOMIC PRESSURE

Economic pressure could be applied in three ways:

First: To compel nations to submit justiciable questions to the World Court.

Second: To compel nations to submit to the decrees of the World Court.

Third: To serve as a penalty against an offending nation for breaking a Hague Convention.

A nation that should decline to take justiciable questions to the World Court, after having agreed with other nations to do so, would manifestly become an outlaw. Why shouldn't other nations immediately declare an embargo of non-intercourse with an outlaw nation, refusing to buy from that nation or sell to that nation or have any intercourse whatsoever with that nation? In this connection I should like to read the resolution that I offered yesterday.

Believing that commerce as the organized business life of the world is interdependent because international, and believing that it can become a great conservator of the world's peace, therefore be it

RESOLVED, by this World Court Congress that the next Hague Conference be urged in the interest of peace, to provide as a penalty for the infraction of its conventions or for a refusal to submit all justiciable issues to arbitration, that an embargo shall be declared against the offending nations by the other signatory nations, as follows:

1—Forbidding an offending nation from buying or selling within their territory or territory under their control.

2—Forbidding an offending nation from raising money through the sale of bonds, or of any other forms of debt, within their territory or territory under their control. Be it further

RESOLVED that the President and officers of this World Court Congress be instructed to take all possible and proper means to secure the adoption by the next Hague Conference of this proposal to apply the economic pressure of commerce as the most efficient, humane and civilized means of insuring the world's peace by making the proposed World Court effective.

ADVANTAGES OVER INTERNATIONAL POLICE FORCE

One of the great advantages of economic pressure is that it can be applied from within, rather than from without. You will recall that Mr. Marburg, in his very interesting address yesterday, spoke of the question that has arisen in many minds as to whether military force should be put behind a World Court. As you know there has been a standing proposal for an international police force. Colonel Roosevelt has often urged the necessity for such a force with his wonted vigor. But after all isn't this proposal, stripped, likely to turn out to be merely militarism masquerading under another name? The fighting armies abroad are composites from different countries, an actual and destructive international police force in operation right now. No gentle euphemism can disguise the grim front of Mars. Unless an international police force is subjected to the most drastic control and used under the most compelling limitations it is in danger of provoking the very war it is organized to avoid. War breeds war, as all history shows. The epigram of David Starr Jordan in a speech at the Economic Club in New York a few weeks ago, envisaged a fact, for it is true, as he said, that "when every one is loaded, some one is going to explode." I will admit that an international police force may serve some good purpose as an international sheriff to aid in carrying forward the due and orderly processes of a World Court. But when it comes to enforcing the decrees of such a Court, I would set over against an international police force, as being incomparably more powerful and of incomparably greater ease in use, the compelling and world-wide force of commerce. Economic pressure touches the war chest of every country. Instead of fighting with bullets let us fight with the money and credit that must be behind bullets. And the world can fight in that way to protect the civilization that has been slowly and painfully built up through the centuries if it will use the force of commerce that stands ready to its hand. This force of commerce can be applied from within. Nations can declare an economic embargo against an offending nation. Or it is more accurate to say the offending nation raises an economic embargo itself by its own act in breaking its pledge to other nations and placing itself outside the pale of civilization by becoming an outlaw.

THE QUESTION OF PROFIT OR LOSS

Of course, the one apparently strong and valid argument to be brought against economic pressure is that it would bring great loss to the commerce of the nations applying it. But that loss would be far less than the loss brought by war. And there would be no loss whatever if war were avoided. Still to the automobile factories in these great Lake Cities, working over time on war contracts, to the farmer enchanted with the magic of “dollar wheat” and to those especially affected by mounting export balances an economic pressure that resulted in smaller trade may seem an astonishing measure to adopt. But ask the cotton growers who had their market cut from under them by war; consider the virtual moratorium in this country when the exchanges closed, bringing an incalculable loss in shrinkage in security values and affecting all business; consider the industrial survey made in New York and other cities during the past winter showing that unemployment had increased threefold; listen to the poignant human appeal from our Charity Organizations; at least one must grant that the shield of Mars has two sides. And it has always had two sides. But the burnished side is not that which reflects the ghastly image of war.

WHAT A TRIAL BALANCE OF COMMERCE SHOWS

If a balance could be rightly struck in this country is there any one who believes that our interests would be best served by war in some other country? This is quite apart from any question of humanity or civilization. Let it be a trial balance of commerce alone and it will show a heavy debit against war. And an accounting will show the same result in all other countries. If this be true, with only current commerce entering into the equation, how staggeringly true it becomes when the piled up debts caused by war are considered. Economists who have examined the matter state that this war has already cost over forty billions of dollars. And the end is not yet.

So why shouldn't business, which has been binding the world more closely together for centuries, be employed to protect the world against the waste and loss of war? Hague Conferences have sought earnestly for penalties that would save their Conventions from being treated as mere "bits of paper." Penalties that every nation would be bound to respect could be enforced through economic pressure. The loss in trade would be small or great in proportion to the amount and duration of the pressure; but it would be at most only an infinitesimal fraction of the loss caused by war.

THE WORLD COURT CAN BE ESTABLISHED

The Chairman reminds me that my twenty minutes is expiring. So let me briefly refer in conclusion to that wonderful address made by Rabbi Silverman yesterday. In it he seemed to say that religion had broken down because the war had come. As he spoke I was reminded of going across Illinois a week ago this morning. I lifted the curtain of my sleeper berth and there in a little town we were passing through stood a church with the cross shining above it in a golden radiance across the great green stretches of the valley—a scene of peace. Then I thought how the cross and the temple and the mosque were looking down that very May morning in the valleys of the Vistula, the Marne and the Rhine on guns, on soldiers and armed camps—a scene of war. Then I thought that the other strong spiritual forces of the world had not been sufficiently powerful to bring wars to an end. In the great Public Library here in Cleveland and in the Libraries of all the warring nations are the works of Goethe and Schiller, of Hugo and Balzac, of Shakespeare and Milton, of Tolstoi and Turgenieff—all imperishable contributions to the world's intellectual life, but still they have not ended war. Your orchestras as well as those of Paris, Berlin and London, play the music of Beethoven, Tschaikowsky, Berlioz and Haydn, and music is one of the most spiritual of the arts, but it has not ended war. Painting and sculpture are part of the common heritage of mankind but they have not ended war. Isn't it possible that the world has depended too much on these spiritual forces? By that I mean, the world has not yet been brought to the stage of civilization by these forces where it can depend on them wholly to end war. The world has had churches and schools and libraries and galleries—but the world like this great city and this country and every other city and country needs a Court House. To my mind, all these spiritual forces have been working through the generations toward a time, toward this very time, when the world would be ready for a World Court. That Court is within our grasp. What is needed is to give it force and power through economic pressure that will compel its use and it will forthwith become a mighty bulwark of civilization, protecting the world from the waste and futility and the utter tragedy of war.

THE WORK OF THE WORLD COURT CONGRESS

CONDENSATION OF AN ARTICLE BY JEREMIAH W. JENKS OF THE
NEW YORK UNIVERSITY, IN THE JUNE "REVIEW OF REVIEWS"

One of the catchwords of the great World Court Congress held in Cleveland in May was "In time of war prepare for peace." There can be no doubt that the accumulating horrors of the present war are turning the minds of the people of all countries, neutral as well as belligerent, toward peace as never before. As the war drags on and it becomes more and more evident that there is to be no crushing victory for either side, belligerent and neutral nations alike are casting about for methods, other than the absolute weakness of a vengeful or greedy rival, that should be sure decidedly to lessen, if not absolutely to prevent, the evils of war in the future.

Mr. John Hayes Hammond, as chairman of the one hundred distinguished leaders of thought, business and government, has taken up the idea of an International Court before which the governments of the world may appear to find a solution for their international justiciable problems. It seems eminently reasonable and probable that plans well thought out may be not only acceptable, but welcomed at the close of the war, by a sufficient number of states to insure a permanent establishment of such a Court, whose decisions would settle finally all questions of a justiceable nature.

In the great meeting at Cleveland Judge Alton B. Parker, in a significant address lauded the patriotic endeavors of Former President Taft to forward the movement toward the lessening of war by arbitration treaties, and introduced Mr. Taft, whose learned and eloquent address made the plan for a World Court appear eminently practicable through its close analogy to the

United States Supreme Court and that court's treatment of the questions that are justiceable.

In subsequent meetings of the World Court Congress the growth of the judicial element in international arbitration was carefully traced. The much-disputed question of the composition of the World Court and the best form for the organization were fully treated, by Theodore Marburg, the former United States minister at Brussels, and by Mr. Emerson McMillin, of New York City, who presented a detailed plan providing for the selection of judges by an electoral college to be chosen by the different nations who should have an equal representation as regards their sovereignty, but have further representation in the electoral college in proportion to their population and the extent of their commerce.

The eloquent addresses not only stirred the enthusiasm of the great audiences, but men of statesmanlike minds were looking forward to practical definite results. Before the World Court Congress adjourned steps were taken to make the Committee of One Hundred a permanent body, and so to organize public opinion, with the aid of other associations, of legislative bodies, and of the press, that it will prove of distinct assistance to the administration at Washington, which has seemed ready at any fitting moment to support the movement practically.

UNITED STATES SUPREME COURT THE PROTOTYPE OF A WORLD COURT

BY
HON. WILLIAM HOWARD TAFT

Institutional advances in the progress of the world are rarely made abruptly. They are not like Minerva, who sprang full-armed from the brain of Jove. If they are to have the useful feature of permanence they must be a growth so that the communities whose welfare they affect may grow accustomed to them as natural and so accept them. Our so-called Anglo-Saxon civil liberty with its guaranties of the Magna Charta, the Petition of Right, the Bill of Rights, the Habeas Corpus Act and the Independence of the Judiciary, constituting the unwritten British Constitution, made our American people familiar with a body of moral restraints upon executive and legislative action to secure the liberty of the individual. The written limitations upon Colonial legislative action in Colonial charters granted by the Crown and their enforcement by the Privy Council of England probably suggested to the framers of our Federal Constitution that the principles of British Constitutional liberty be given written form and be committed to a Supreme and Independent Court to enforce them as against the Executive and Congress, its coördinate branches in the Government. The step, epochal as it was, from judicially enforcing such limitations against a subordinate Legislature under a written charter of its powers, to a judicial enforcement of the limitations imposed by the sovereign people on the Legislature and Executive that they the people had created in the same instrument, was not radical but seemed naturally to follow. The revolted Colonies after the Revolution, though united by a common situation and a common cause in

their struggle with Great Britain, and acting together through the Continental Congress in a loose and voluntary alliance, were sovereigns independent of each other. The Articles of Confederation, which declared their union to be permanent, were not agreed to and ratified in such a way as to be binding until some five years after the Declaration of Independence. Meantime it had become increasingly evident that, strong as were their common interests, they had divergent ones, too, which might embarrass their kindly relations. The leagues of Greece had furnished an example of confederations of small States, forced together by a common oppressor and foe, which had found it wise to settle their own differences by some kind of arbitral tribunal. The office which the Privy Council and the Crown had filled in settling inter-colonial controversies suggested an analogy less remote than those in Grecian history and prompted the adoption of a substitute. So there was inserted in the Articles of Confederation a provision for a “court to determine disputes and differences between two or more States of the Confederation concerning boundary jurisdiction or any other cause whatever.” The complainant State was authorized to present a petition to Congress stating the matter in question and praying for a hearing. Notice of this was to be given by order of Congress to the other State in the controversy, and a day was assigned for the appearance of the two parties by their lawful agents who should agree upon judges to constitute a court for hearing the matter in question. If they could not agree, Congress was then to name three persons out of each of the thirteen States. From this list each party was required alternately to strike out one until the number was reduced to thirteen, and from these thirteen not less than seven nor more than nine names, as Congress should direct, were in the presence of the Congress to be drawn by lot, and the persons whose names were so drawn, or any five of them, constituted the court to hear and finally determine the controversy.

Proceedings were instituted under this provision before the Constitution by New Jersey against Vermont, by New York against Vermont, by Massachusetts against Vermont, by Pennsylvania against Virginia, by Pennsylvania against Connecticut, by New Jersey against Virginia, by Massachusetts against New York, and by South Carolina against Georgia. Only one of these cases came to hearing and decision by a court selected as provided. That was the case of Pennsylvania against Connecticut, involving the governmental jurisdiction over the valley of Wyoming and Luzerne

county. The court met and held a session of forty-one days at Trenton in New Jersey. Able counsel represented the parties, and the court made a unanimous decision in favor of Pennsylvania, without giving reasons. A compromise is suspected, because Connecticut promptly acquiesced, and soon thereafter, with the approval of the Pennsylvania delegation, Congress passed an act accepting a cession by Connecticut of all the lands claimed by it west of the west line of Pennsylvania, except the Western Reserve, now in Ohio, which Connecticut was thus given ownership of, and which it sold and settled. A number of the other cases were compromised, and in some no proceedings were taken after the initial ones.

In the Constitutional Convention the necessity for some tribunal to preserve peace and harmony between the States was fully conceded by all, but the form of court was the subject of some discussion. One proposal was that the Senate should be a court to decide between the States all questions disturbing peace and harmony between the States, while the Supreme Court was given only jurisdiction in controversies over boundaries. Ultimately, however, the judicial power of the United States exercised through the Supreme Court was extended to “controversies between States,” without exception.

To those who do not closely look into this jurisdiction of the Supreme Court it seems no different from that of the ordinary municipal court over controversies between individuals. The States are regarded merely as municipal or private corporations subject to suit process, trial, and judgment to be rendered on principles of municipal law declared by statute of State Legislature or Congress, or established as the common law. It is assumed that the Constitution has destroyed the independence and sovereignty of the States and made the arrangement a mere domestic affair. This is a misconception. The analogy between the function of the Supreme Court in hearing and deciding controversies between States and that of an international tribunal sitting to decide a cause between sovereign nations is very close. When the suit by one State against another presents a case that is controlled by provisions of the Federal Constitution, of course there is nothing international about it. But most controversies between States are not covered by the Federal Constitution. That instrument does not, for instance, fix the boundary line between two States. It does not fix the correlative rights of two States in the water of a non-navigable stream that flows from one of the States into another. It does not regulate the use which

the State up stream may make of the water, either by diverting it for irrigation or by using it as a carrier of noxious sewage. Nor has Congress any power under the Constitution to lay down principles by Federal law to govern such cases. The Legislature of neither State can pass laws to regulate the right of the other State. In other words there is nothing but international law to govern. There is no domestic law to settle this class of cases any more than there would be if a similar controversy were to arise between Canada and the United States.

For many purposes, the States are independent sovereigns and not under Federal control. They have lost the powers which the people in the Constitution gave to the Central Government; but in the field of powers left to them each is supreme within its own limits, and by the exercise of that power may trespass on the exercise of similar power by its neighbor. How is such a conflict to be settled? It may be by diplomacy, i.e., by negotiation and compromise agreement, but this under the Constitution must be with the consent of Congress. It might be settled by war, but the Constitution forbids. And the State invaded by the forces of another State can appeal to the General Government to resist and suppress the invasion, no matter what the merits of the quarrel. In other words, one of the attributes of sovereignty and independence which the people in ordaining the Constitution took away from the States was the unlimited power to make agreements between each other as to their respective rights, and the other was that of making war on each other when other means of settlement failed.

What did the people through the Constitution substitute for these attributes of unrestricted diplomatic negotiation and compromise and the right to go to war over such interstate issues? The right of the complaining State to hale the offending State before the Supreme Court and have the issue decided by a binding judgment.

Now, can the complaining State bring every issue between it and another State before the Supreme Court? No. The only issues which the Court can hear and decide are questions which in their nature are capable of judicial solution. Mr. Justice Bradley first called such questions “justiciable,” and Chief Justice Fuller and Mr. Justice Brewer used the same term. There are issues between States of a character which would be likely to lead to high feeling and to war if they arose between independent sovereignties, and which the Supreme Court cannot decide because they are not capable of

judicial solution. In such cases between States of course there can be no war, because the Federal Government would suppress it. Therefore, if an amicable understanding cannot be reached, the States are left with an unsettled dispute between them and no way of deciding it. They must put up with the existing state of things.

There have been several interesting cases before our Supreme Court illustrating the character of the jurisdiction I have been describing. Chicago built a sewage canal to drain her sewage with the aid of the waters of Lake Michigan into the Desplaines River, then into the Illinois, and then into the Mississippi, from which St. Louis and other Missouri towns derived their water supply. The Governor of Illinois was empowered to open the canal. The State of Missouri brought suit in the Supreme Court of the United States to enjoin the State of Illinois and the Sanitary District of Chicago from continuing the flow, on the ground that the impurities added to the Mississippi water had greatly increased the typhoid fever in Missouri. It was held that this was a subject matter capable of judicial solution—that Missouri was the guardian of her people's welfare and had a right to bring such a suit, and, if she made a clear case, to enjoin such use of the Mississippi and its tributaries.

Mr. Justice Shiras, in upholding the jurisdiction (*Missouri vs. Illinois*, 180 U.S. 208, 241), spoke for the Court as follows:

“The cases cited show that such jurisdiction has been exercised in cases involving boundaries and jurisdiction over lands and their inhabitants, and in cases directly affecting the property rights and interests of a State. But such cases manifestly do not cover the entire field in which such controversies may arise, and for which the Constitution has provided a remedy; and it would be objectionable, and indeed impossible, for the Court to anticipate by definition what controversies can and what can not be brought within the original jurisdiction of this Court.

“An inspection of the bill discloses that the nature of the injury complained of is such that an adequate remedy can only be found in this Court at the suit of the State of Missouri. It is true that no question of boundary is involved, nor of direct property rights belonging to the complainant State. But it must surely be conceded that, if the health and comfort of the inhabitants of a State are threatened, the State is the proper party to represent and defend them. If Missouri were an independent and

sovereign State, all must admit that she could seek a remedy by negotiation, and, that failing, by force. Diplomatic powers and the right to make war having been surrendered to the General Government, it was to be expected that upon the latter would be devolved the duty of providing a remedy, and that remedy, we think, is found in the Constitutional provisions we are considering.”

This hearing was on demurrer. When the case came before the Court again on the merits, Mr. Justice Holmes delivered the judgment of the Court, and, while affirming the jurisdiction of the Court, pointed out the difficulties the Court has in exercising it and the care it must take in doing so. He said in the course of his opinion:

“It may be imagined that a nuisance might be created by a State upon a navigable river like the Danube which would amount to a *casus belli* for a State lower down unless removed. If such a nuisance were created by a State upon the Mississippi, the controversy would be resolved by the more peaceful means of a suit in this Court.”

Speaking of this provision in the Constitution extending the judicial power to controversies between States, Mr. Justice Bradley in *Hans vs. Louisiana* (134 U.S. 1-15) said:

“Some things, undoubtedly, were made justiciable which were not known as such at the common law; such, for example, as controversies between States as to boundary lines, and other questions admitting of judicial solution. And yet the case of *Penn vs. Lord Baltimore* (1 Ves. Sen. 444) shows that some of these unusual subjects of litigation were not unknown to the courts even in Colonial times; and several cases of the same general character arose under the Articles of Confederation, and were brought before the tribunal provided for that purpose in those articles (131 U. S. App. 1). The establishment of this new branch of jurisdiction seemed to be necessary from the extinguishment of diplomatic relations between the States. Of other controversies between a State and another State, or its citizens, which, on the settled principles of public law, are not subjects of judicial cognizance, this Court has often declined to take jurisdiction.”

A very satisfactory discussion of the scope of the power of the Supreme Court to settle controversies between States is contained in Mr. Justice Brewer’s opinion in the suit brought by Kansas against Colorado to restrain the latter from absorbing so much of the water of the Arkansas River

flowing from Colorado into Kansas as seriously to interfere with the supply of water from the river for irrigation purposes in Kansas. He said (206 U. S. 95, 99):

“When the States of Kansas and Colorado were admitted into the Union they were admitted with the full powers of local sovereignty which belonged to other States (*Pollard v. Hagan*, *supra*; *Shively v. Bowlby*, *supra*; *Hardin v. Shedd*, 190 U. S., 508, 519); and Colorado by its legislation has recognized the right of appropriating the flowing waters to the purposes of irrigation. Now the question arises between two States, one recognizing generally the common law rule of riparian rights and the other prescribing the doctrine of the public ownership of flowing water. Neither State can legislate for nor impose its own policy upon the other. A stream flows through the two and a controversy is presented as to the flow of that stream. It does not follow, however, that because Congress cannot determine the rule which shall control between the two States, or because neither State can enforce its own policy upon the other, the controversy ceases to be one of a justiciable nature, or that there is no power which can take cognizance of the controversy and determine the relative rights of the two States. Indeed, the disagreement, coupled with its effect upon a stream passing through the two States, makes a matter for investigation and determination by this Court....

“As Congress cannot make compacts between the States as it cannot in respect to certain matters by legislation compel their separate action, disputes between them must be settled either by force or else by appeal to tribunals empowered to determine the right and wrong thereof. Force under our system of government is eliminated. The clear language of the Constitution vests in this Court the power to settle those disputes. We have exercised that power in a variety of instances, determining in the several instances the justice of the dispute. Now, is our jurisdiction ousted, even if, because Kansas and Colorado are States sovereign and independent in local matters, the relations between them depend in any respect upon principles of international law? International law is no alien in this tribunal....

“One cardinal rule, underlying all the relations of the States to each other, is that of equality of right. Each State stands on the same level with all the rest. It can impose its own legislation on no one of the others, and is bound to yield its own views to none. Yet, whenever, as in the case of *Missouri v.*

Illinois, 180 U. S., 208, the action of one State reaches through the agency of natural laws into the territory of another State, the question of the extent and the limitations of the rights of the two States becomes a matter of justiciable dispute between them, and this Court is called upon to settle that dispute in such a way as will recognize the equal rights of both and at the same time establish justice between them. In other words, through these successive disputes and decisions this Court is practically building up what may not improperly be called interstate common law.”

Controversies between one State and another, or its citizens, which are not justiciable or capable of judicial solution find examples in the suits brought before the Supreme Court. One case of which the Supreme Court refused to take jurisdiction was *Wisconsin vs. the Pelican Insurance Company* (1 U. S.), in which the State of Wisconsin sought to enforce against a Louisiana insurance company a judgment rendered in a Wisconsin court for penalties imposed by a Wisconsin statute upon foreign insurance companies for failure to comply with statutory regulations of its business. It was held that neither under international comity nor law was one nation required to enforce extra-territorially the criminal law of another nation, and that therefore the controversy presented was not one of which as between the States of the Union the Supreme Court could take cognizance. Again, in *Louisiana vs. Texas*, 176 U. S., 1, Louisiana sought to restrain the Governor of Texas from so enforcing a quarantine law as to injure the business of the people of Louisiana. The law itself on its face was a proper one for the protection of Texas. In dismissing the suit the Court said:

“But in order that a controversy between States, justiciable in this Court, can be held to exist, something more must be put forward than that the citizens of one State are injured by the maladministration of the laws of another. The State cannot make war, nor enter into treaties, though they may, with the consent of Congress, make compacts and agreements. When there is no agreement, whose breach might create it, a controversy between States does not arise unless the action complained of is State action, and acts of State officers in abuse or excess of their powers cannot be laid hold of as in themselves committing one State to a distinct collision with a sister State.

“In our judgment, this bill does not set up facts which show that the State of Texas has so authorized or confirmed the alleged action of her health

officer as to make it her own, or from which it necessarily follows that the two States are in controversy within the meaning of the Constitution.”

CONTROVERSIES BETWEEN INDEPENDENT NATIONS SUGGEST THEMSELVES WHICH ARE NOT CAPABLE OF JUDICIAL SOLUTION AND YET ARE QUITE CAPABLE OF LEADING TO WAR

Thus suppose *C* nation in the exercise of its conceded powers admits to its shore, and indeed to its citizenship, the citizens or subjects of *A* nation and excludes those of *B* nation from both. The discrimination is certainly within the international right of *C* nation, but it may lead to acrimony and war. This is not a justiciable question, nor one that could be settled by a court.

The so-called General Arbitration Treaties negotiated by Secretary Knox with France and England used the word “justiciable” to describe the kind of questions which the parties bound themselves to submit to arbitration. They defined this to include all issues that could be decided on principles of law or equity. The issue whether a question arising was justiciable and arbitrable was to be left to the decision of a preliminary investigating commission. The term justiciable and indeed the whole scheme of these treaties were suggested by the provision for settling controversies between States in the Federal Constitution and the construction of it by the Supreme Court. The controversies between States, decision of which was not determined by rules furnished by the Constitution or by Congressional regulation, were strictly analogous to questions arising between independent nations, and were to be divided into justiciable and non-justiciable questions by the same line of distinction. The treaties were not ratified by the United States Senate, but their approval by England and France and by the Executive of this country constitutes a valuable and suggestive precedent for the framing of the Constitution and jurisdiction of an arbitral court to be one of the main features of a league of peace between the great nations of the world.

Now, is it idle to treat such a league as possible? Well, let us take England and Canada. For a hundred years we have been at peace. For that century we have had a frontier between us and Canada four thousand miles long which is entirely undefended by forts or navies. We have had issue after issue between the two peoples that because of their nature might have led to war. But we have settled them by negotiation, or, when that has

failed, by arbitration, until now it is not too much to say that the “habit” of arbitration between us is so fixed that a treaty to secure such a settlement in future issues would not make it more certain than it is. I concede that conditions have been favorable for the creating of such a customary practice. The two peoples have the same language and literature, the same law and civil liberty and the same origin and history. Each had a wide domain, in the settlement and development of which their energies and ambitions have been absorbed. The jealousies and encroachments of neighbors in the thickly populated regions of Europe have not been present to stir up strife. And yet we ought not to minimize the beneficent significance of this century of peace by ignoring the fact that many of the issues which we have settled peaceably seemed at the time to be difficult of settlement and likely to lead to war. The Alabama Claims issue and the Oregon Boundary dispute were two of this kind.

It is interesting to note that we now have two permanent arbitral English-American Commissions settling questions. One of them is to determine the equitable rules to govern the use of waters on our national boundary in which both nations and their citizens have an interest, and to apply them to causes arising. The analogy between the function which the Supreme Court performed in the Kansas and Colorado case in regard to the use of the Arkansas River and that of this Commission in respect to rivers traversing both countries and crossing the border is perfect. Having thus reached what is practically the institution of a League and Arbitral Court with England and Canada for the preservation of peace between us, may we not hope to enlarge its scope and membership and give its benefits to the world?

Will not the exhaustion in which all the belligerents, whether victors or vanquished, find themselves after this awful sacrifice of life and wealth make them wish to make the recurrence of such a war less probable? Will they not be in a mood to entertain any reasonable plan for the settlement of international disputes by peaceable means? Now, can we not devise such a plan? I think we can.

The Second Hague Conference has proposed a permanent court to settle questions of a legal nature arising between nations. But the signatories to the convention would under such a plan not be bound to submit such questions. Nor were the conferring nations able to agree on the constitution of the court. But the agreement on the recommendation for the

establishment of such a court shows that the idea is within the bounds of the practical.

To constitute an effective League of Peace we do not need all the nations. Such an agreement between eight or nine of the Great Powers of Europe, Asia, and America would furnish a useful restraint upon possible wars. The successful establishment of a Peace League between the Great Powers would draw into it very quickly the less powerful nations.

What should be the fundamental plan of the League?

It seems to me that it ought to contain four provisions. In the first place, it ought to provide for the formation of a court which would be given jurisdiction by the consent of all the members of the League to consider and decide justiciable questions between them or any of them, which have not yielded to negotiation, according to the principles of international law and equity, and that the court should be vested with power, upon the application of any member of the League, to decide the issue as to whether the question arising is justiciable.

Second—A Commission of Conciliation for the consideration and recommendation of a solution of all non-justiciable questions that may arise between the members of the League should be created, and this Commission should have power to hear evidence, investigate the causes of difference, and mediate between the parties and then make its recommendation for a settlement.

Third—Conferences should be held from time to time to agree upon principles of international law, not already established, as their necessity shall suggest themselves. When the conclusions of the Commission shall have been submitted to the various parties to the League for a reasonable time, say a year, without calling forth objection, it shall be deemed that they acquiesce in the principles thus declared.

Fourth—The members of the League shall agree that if any member of the League shall begin war against any other member of the League, without first having submitted the question, if found justiciable, to the Arbitral Court provided in the fundamental compact, or without having submitted the question, if found non-justiciable, to the Commission of Conciliation for its examination, consideration, and recommendation, then the remaining members of the League agree to join in the forcible defense of the member thus prematurely attacked.

First—The first feature involves the principle of the general arbitration treaties with England and France, to which England and France agreed, and which I submitted to the Senate, and which the Senate rejected or so mutilated as to destroy their vital principle. I think it is of the utmost importance that it should be embraced in any effective League of Peace. The successful operation of the Supreme Court as a tribunal between independent States in deciding justiciable questions not in the control of Congress nor under the legislative regulation of either State furnishes a precedent and justification for this that, I hope, I have made clear. Moreover, the inveterate practice of arbitration, which has now grown to be an established custom for the disposition of controversial questions between Canada and the United States, is another confirmation of the practical character of such a court.

Second—We must recognize, however, that the questions within the jurisdiction of such a court would certainly not include all the questions that might lead to war, and therefore we should provide some other instrumentality for helping the solution of those questions which are non-justiciable. This might well be a Commission of Conciliation—a commission to investigate the facts, to consider the arguments on both sides, to mediate between the parties, to see if some compromise cannot be effected, and finally to formulate and recommend a settlement. This may involve time, but the delay, instead of being an objection, is really one of the valuable incidents in the performance of such a function by a commission. We have an example of such a Commission of Conciliation in the controversy between the United States and Great Britain over the Seal Fisheries. The case on its merits as a judicial question was decided against the United States, but the world importance of not destroying the Pribiloff Seal herd by pelagic sealing was recognized and a compromise was formulated by the arbitral tribunal, which was ultimately embodied in a treaty between England, Russia, Japan, and the United States. Similar recommendations were made by the court of arbitration which considered the issues arising between the United States and Great Britain in respect to the Newfoundland Fisheries.

Third—Periodical conferences should be held between the members of the League for the declaration of principles of international law. This is really a provision for something in the nature of legislative action by the nations concerned in respect to international law. The principles of

international law are based upon custom between nations established by actual practice, by their recognition in treaties and by the consensus of great law writers. Undoubtedly the function of an Arbitral Court established as proposed in the first of the above suggestions would lead to a good deal of valuable judge-made international law. But that would not cover the whole field. Something in the nature of legislation on the subject would be a valuable supplement to existing international law. It would be one of the very admirable results of such a League of Peace that the scope of international law could be enlarged in this way. Mr. Justice Holmes, in the case of *Missouri vs. Illinois*, to which I have already referred, points out that the Supreme Court in passing on questions between the States and in laying down the principles of international law that ought to govern in controversies between them should not and can not make itself a legislature. But in a League of Peace there is no limit to the power of international conferences of the members in such a quasi-legislative course, except the limit of the wise and the practical.

Fourth—The fourth suggestion is one that brings in the idea of force. In the League proposed, all members are to agree that if any one member violates its obligation and begins war against any other member, without submitting its cause for war to the Arbitral Court if it is a justiciable question, or to the Commission of Conciliation if it is otherwise, all the members of the League should unite to defend the member attacked against a war waged in breach of plighted faith. It is to be observed that this does not involve the members of the League in an obligation to enforce the judgment of the Court or the recommendation of the Commission of Conciliation. It only furnishes the instrumentality of force to prevent attack without submission. It is believed it is more practical than to attempt to enforce judgments after the hearing. One reason is that the failure to submit to one of the two tribunals the threatening cause of war for the consideration of one or the other is a fact easily ascertained, and concerning which there can be no dispute, and it is a palpable violation of the obligation of the member. It is wiser not to attempt too much. The required submission and the delay incident thereto will in most cases lead to acquiescence in the judgment of the Court or in the recommendation of the Commission of Conciliation. The threat of force against plainly unjust war—for that is what is involved in the provision—will have a most salutary deterrent effect. I am aware that membership in this League would involve

on the part of the United States an obligation to take part in European and Asiatic wars, it may be, and that in this respect it would be a departure from the traditional policy of the United States in avoiding entangling alliances with European or Asiatic countries. But I conceive that the interest of the United States in the close relations it has of a business and social character with the other countries of the world—much closer now than ever before—would justify it, if such a League could be formed, in running the risk that there might be of such a war in making more probable the securing of the inestimable boon of peace to the world that now seems so far away.

THE CLEVELAND CONGRESS

BY
JOHN WESLEY HILL

This is a topsy-turvy world to-day. Thinking men—and women too, for that matter, stand aghast at the harking backward to barbarism. In one fell swoop, as it were, from a plane of ostensible civilization the greater part of the civilized universe has been plunged into a veritable maelstrom; an indescribable cataclysm of heinous warfare and matchless bestiality. Danté in his wildest dreams painted no such Inferno and the end blacker in perspective than the background of a Doré painting is not yet!

Out of the chaos what may come is a matter of rife speculation for future historians. But that there is a sovereign remedy for the avoidance and future recurrence of such world racking evils of carnal pillage, wholesale murder and strife, is a fact that cannot be gainsaid and the keynote for that panacea was sounded at Cleveland on three gala days, this last May, when the first great World Court Congress was held with an enthusiasm and earnestness almost unprecedented in the history of such assemblages in this country.

This whole land was just awakening from a commercial and industrial somnolence, unrecorded except in days of panic and war at home, when the Congress was convened on May 12th and the progenitors of the great movement had many misgivings as to their ability to induce the staid business man of this country to lay aside his duties even for the movement and attend.

Marts and 'changes had been closed; industries idle and nearly the whole business world at a standstill for months past when the call for the Congress was sounded and it was thought by some of its warmest advocates that so

many difficulties beset the way that but a meagre gathering could be assembled. To the astonishment and gratification of the big men back of the movement just the reverse was true and it is doubtful if a more representative body of Americans ever assembled under one roof. A one time President, Senators of the State and Nation, members of Congress, great Captains of Industry, Educationalists, Bankers, Brokers, Ministers of the Gospel, diplomats and men of conspicuous prominence in nearly every walk in life thronged the immense armory in which the Congress was in session for three days, and the initial movement for a great World Court begun.

Some idea of the intense interest in the all-important prospect may be had from the statement that no less than twenty-eight governors of various states of the Union signed the call for the Congress. More than one thousand delegates answered the roll call, representing national and civic life in all its different branches. Some of the more conspicuously prominent men present were ex-President William Howard Taft, John Hays Hammond, Judge Alton B. Parker, Henry Clews, Theodore Marburg, Rabbi Joseph Silverman, James Brown Scott, of the Carnegie Peace Foundation, Denys P. Myers, of the World Peace Foundation, Hon. Bainbridge Colby, of New York, Dr. Francis E. Clark, Dr. Samuel T. Dutton, Hon. Henry Lane Wilson, William Dudley Foulke, Senator Atlee Pomerene of Ohio, Harry A. Garfield, son of the late President Garfield, Thomas Raeburn White, Bascom Little, Herbert S. Houston, Vice-President of Doubleday, Page & Co., Thomas B. Warren, Senator Warren G. Harding, Emerson McMillin, and numerous others.

From noon on Wednesday, May 12th, until late Friday evening, the Congress was constantly in session and many memorable addresses were made by men notable in the world of affairs. The various addresses delivered put peace before the world as a business proposition. They discussed the economic side of war and demonstrated that peace is necessary to business stability and prosperity, that war directs and masters men, money, and measures, diverts them from the legitimate channels of industry and concentrates effort upon destruction instead of the constructive processes which are essential to public and private welfare. The horrible slaughter and devastation of war are brought to the consciousness of the people of all countries by the gigantic contest now raging, more vividly than ever before, and the emotions engendered lead many good men and women to the suggestion of all kinds of idealistic and impracticable

schemes for bringing the war to an end and ushering in universal peace. But when we look at the character of the nations engaged in the struggle and of the men who direct the policies of these nations, and at the deep underlying causes which precipitated the conflict, we perceive that peace cannot be restored by mere sentiment, nor can the permanence of peace if it is once secured, be guaranteed by mere paper treaties. The problem of peace is a problem which requires law as the basis of its solution. It is a problem which cannot be solved by sentimentalists and dreamers, but must be grappled by strong and clear visioned men. The failure of many merely sentimental peace movements in the past has tended to bring the cause of peace into ill repute. Those who called the World Court Congress at Cleveland felt that the time had come when strong hands were needed to launch an effective movement, and they accordingly summoned an array of men which has never been surpassed in any gathering, for collective wisdom, knowledge of the world, experience, and practical business sense. The discussion conducted by these men was in no wise historical or sciolistic, but based upon the solid foundation of reason, law, justice, and feasibility. The speakers were informed by knowledge and experience; many were adepts in the science of business and finance and government and practical politics. Some were experts in international law, and diplomacy. The plan they proposed must commend itself to practical business men for its workability, no less than to idealists for its justice and essential benevolence.

One great, rhythmic, world-bettering ideal was the motif, the soul inspiring theme of all those addresses and invocations for a World Court—a World Court where men may carry their grievances like men, not beasts of the field, and have their differences adjudged on the basic principles of equity and the fundamentals of justice; a World Court which might be a tribunal in prototype of the greatest court of the greatest peoples in the universe; a World Court which by its rulings would make not possible the mobocracy which menaces to-day; a court which by its laws unto itself will preclude beyond possibility such wars of extermination as are existent to-day!

The Congress proceeded from the very first with the machinery of a great National Convention. It had been said that no such gathering of peace advocates and their factional followers could be assembled without petty bickerings, harsh argument, and debate. Nothing could be further from the resultant fact. Not a note of discord marred the proceedings and the

preliminary work looking to the establishment of the international peace tribunal was accomplished with dispatch and fine promise. The speakers of honor and the delegates to a man seemed to be inspired with the work ahead and the vital import of final achievement.

The titanic struggle between the great powers abroad was not touched upon. Nothing was said or done that could possibly embarrass President Wilson or his advisors and all thought and effort was for future prevention rather than momentary cure. Former President Taft's address, delivered on the opening day of the Congress, had largely to do with the question of arbitration. He dwelt upon its grave importance and did not think it necessary in the constitution of an effective league of peace to embody all the nations. An agreement of eight or nine of the great powers of Europe, Asia, and America would furnish a useful restraint upon possible wars and its successful establishment draw into it eventually the less powerful nations. The Hon. Alton B. Parker set his seal of approval upon such an international court and called attention to the fact that it already had had the careful consideration of the forty-four states comprising the Second Hague Conference; by the Institute of International Law; by the approving leading powers since 1907 and by the American Society for Judicial Settlement of International Disputes at no less than four annual conferences. A World Court patterned after our own Supreme Court—the greatest court in the history of the world—he thought entirely possible and practicable.

Senator Warren G. Harding of Ohio inferred that the projected World Court would give a new stamp on the sacredness of international contracts and that he said was a guarantee of peace itself.

The World Court was just as feasible as a family court, declared Hon. John Hays Hammond, although it did involve more elements as a tribal court. The time was ripe, he declared, for the higher régime of pacific reason and moral adjudication and America should voice the world groping and moral inquiry of the race and cause them to crystallize into a new world state "where men shall learn war no more."

After setting forth the limitations of the World's Court which perforce of necessity turns to the future rather than the past the Hon. Henry Lane Wilson asked "How vast would be the gain to humanity and civilization, how greatly would the number of wars be reduced, and how enormously

would the horrors of conflict be diminished, if such a court were now in existence?”

The purpose of the Congress, said Bainbridge Colby, was to bear aloft the standards of justice and of law; of justice as the mightiest concern of mankind—of law as its indispensable instrument. Mr. Colby positively denied that force had dethroned reason and declared that “The purpose of this Congress is to assert the undaunted and unshaken belief of the freest people in the world, that God still reigns, and that justice is mightiest in the mighty.”

Rabbi Joseph Silverman made an appeal for the awakening of a new spirit of patriotism which would point the way to a great World Court for peace. “We are worse off to-day,” he asserted, “than men were in the days of savagery. The savage went forth with his bow and his arrow and his tomahawk, and one savage could, at best, with one shot kill one human being. But the modern civilized man goes forth with Krupp guns and cannons and bombs and shells and submarines and automobile and airship, and one human being to-day, with these arts and sciences of civilization, one human being, pressing one button, with one shot can kill ten thousand human beings, and destroy hundreds of millions of dollars’ worth of property. One savage can kill one man—one civilized man can destroy a whole city.”

Mr. Henry Clews in an address entitled “An Epochal Event,” called attention to the fact that the World Court Congress was an event of supreme importance and attracted world wide attention and interest that could not fail to help the cause of permanent peace. The movement, he avowed, for the creation of a great International Court of Justice “brings us a step nearer to that sublime idea of the inspired writer when men ‘shall beat their swords into plowshares and their spears into pruning hooks,’ and they shall hear no more of war upon the surface of this fair earth.”

Emerson McMillin discussed the composition of “The World Court.” He would not brook the thought that there was not patent and paramount need for such an institutional tribunal. The necessity for an International Court was so obvious that it was not a subject for discussion. The delegates of forty-five states would not have supported it at the Hague Conference if there had not been a great desire and a growing demand for it. He called attention, in his warm advocacy for the establishment of the Court, to the

records of the two Hague Conferences. In 1899 it was but necessary to suggest the creation of a World's Court to have it promptly put aside as impracticable. After a lapse of but eight years the 1907 Conference adopted the following: "The Conference recommends to the signatory powers the adoption of the project hereunto annexed of a convention for the establishment of a Court of Arbitral Justice and its putting in effect, as soon as an accord shall be reached upon the choice of the judges and the constitution of the court." This received the unanimous support of all the conferees.

In a logical appeal for such a court, U. S. Senator Atlee Pomerene of Ohio, presented some startling facts. "My friends," he said, "the other day the Cleveland *Plain Dealer* said, editorially, that according to the best estimates up to date there had been lost in this horrible war, 5,970,000 men. Think of it. In the great State of Ohio, which Senator Harding and I have the honor to represent, according to the last Federal census there were only 4,700,000 souls, men, women, and children. To-day there are, perhaps about 5,000,000 souls in Ohio. In other words, in the short space of about eight or nine months, nearly one million more men have been lost than we have men, women, and children in Ohio, all because the heads of governments are worshipping old Mars."

Thomas Raeburn White presented to the Congress a series of technical provisions for the appointment of judges to the International Court of Arbitration. They could be easily surmounted, however, he thought, and in an address on "The Method of Procedure," the Hon. James Brown Scott declared that great as these difficulties were in the selection of judges, they were not insuperable.

President Harry A. Garfield, of Williams College, in a discussion on "The Minimum Number of Nations Required to Successfully Inaugurate the Court," thought that four of the great powers would suffice for an inaugural. He called attention to the fact that Mr. Thomas Raeburn White, speaking at the third national conference of the American Society for Judicial Settlement of International Disputes in December, 1912, analyzed the articles of the convention providing for the establishment of the court and showed that the question was clearly left to the Powers represented at the conference, and could be adopted by any two or more of them when they saw fit. There appears to be no serious dissent from this proposition.

There were other numerous addresses by men of nation-wide importance. There were utterances that will go down through the aeons of a new history-making civilization.

Men who had come to the Congress with the air of dreamers went away surcharged with the inspired atmosphere of accomplishment. As Bainbridge Colby had said it was no new thought, no new ideal, this scheme of the World Congress for a World Court. It had come down through the centuries. But in the other ages, ay, even in the latter years there had been no such dire necessity for this purposed International Tribunal. To-day was a different day with a different need. Jew and Gentile, capitalist and laborer touched shoulders and joined hands in the common weal and the great cause at this World Congress for the World Court. The Rabbi pointed out in one breath that the arrow of the savage killed one man and the gun of civilization destroyed a whole city and all within! In the next the figures of a grave Senator pointed to the horror that in a few months of civilized warfare 1,000,000 more souls have been hurled into eternity than there is population in the Buckeye State. Small wonder that the cardinal, incontrovertible facts and figures so widely disseminated through the press of this country have staggered the comprehension and understanding of humanity the world over. For the wassail cries of the royal rioters in warfare of all other ages are but miniature in comparison with those in this era of infamy.

A word in conclusion to the Mayor Newton D. Baker, Bascom Little and the people of Cleveland. Partly by chance and partly by design this almost matchlessly beautiful lake city was selected for the initial sessions of the World Congress. By municipal experts the world over, Cleveland is counted one of the greatest accomplishments in latter-day city building extant. Environment is everything and I shall always believe that so much was accomplished at the Congress because of the perfection of arrangements and the fitting surroundings to say nothing of the incomparable hospitality of the city. Since my return to New York and the offices of the International Peace Forum, I have been besieged with inquiries in relation to these accomplishments. Beginning with the month of July, a great magazine entitled THE WORLD COURT published under the auspices of the International Peace Forum will make its appearance on the book stalls. Many of these inquiries will then be answered. Its main purpose will be to advocate the

establishment of a World Court which I am almost prone to prophesy is already assured. In addition the magazine will carry departments of Art, Music, Literature, the Drama and Information. Its editors and contributors will be eminent men of letters and it will carry a department under the title of "World Comment" which will hold and interest every thinking man in this and other lands. This magazine will have many kind words for Cleveland. That city itself may well feel proud of its achievements in behalf of the World Congress and a World Court.

And for a surety it was an epoch and an honor in the brilliant history of that great city. When the World Court is established the name of the city of Cleveland will ever be associated with it. And the two names will spell peace—International, national, commercial, and industrial peace—the peace that passeth all understanding and the peace that a tired world is crying for with that soul-racking wail that comes only from the soul of a strong and helpless man.

I shall never forget the evening of the last session of the Congress. As I wended my way out of the armory, the city arose before me in all its multicolored splendor—the passing throngs of men whose martial air proclaimed their success as plain as the gold lettering on the haberdasher's windows, the beautifully gowned and garmented women and the streets and avenues in all their kaleidoscopic picturesqueness. And then another picture of the cities of the old world laid bare in want and woe and war.

God forbend such ill fortune to you, Cleveland, in the evil days for assuredly you have contributed your share to the Cause of Peace.

REVIEW OF BOOKS

A Short History of War and Peace. By G. H. PERRIS, Author of "Russia in Revolution," "The Life and Teaching of Tolstoy," etc. Membre de l'Institute International de Paix. 50 cents net. Home University Library. New York, Henry Holt & Company; London, Williams and Norgate.

Mr. Perris, who like all other authors of the Home University Library series is a recognized authority of his subject. He gives a brilliant summary, condensing into a nutshell the steps by which the nations have passed from a state of constant war to a state of comparative peace, and shows that soldiers of genius no longer appear because the environment is unfavorable and the demand has failed, Othello's occupation's gone. The mechanism of war has killed the art of war; and this mechanism is doomed itself because, while it can reap no recompense, its cost in use is likely to bring its owners to the pit of bankruptcy, famine and revolution.

In summing up Mr. Perris says: "So far from being based upon unchangeable passions, the nature of man as "a social animal" is based upon material and moral interests which have undergone deep changes, indeed, but in a certain general order and direction. We can trace these changes both in the structure and the function of successive societies established in the course of the swarming process by which the earth has been filled." He shows that the ideas of arbitration have been gaining ground slowly but surely.

Belgium. By C. K. ENSOR, sometime scholar of Balliol College, Oxford, England. With maps, 50 cents net. Series of the Home University Library, number 95, pp 256. New York: Henry Holt & Co., 1915.

The events of August, 1914, and their sequel have shown Belgium to many in a new light. They have seen a nation where they had supposed that

there was only geographical expression. They have seen martial courage where they had forgotten that it had been famous for centuries. They have been surprised to find in this little land so much civic patriotism.

Belgium is the most accessible country on the Continent to the English: and it has been visited by numberless Americans since Longfellow's day, but it is proverbially easy to overlook what lies under one's nose. Those of us who have long been aware that Belgium is something more than a collection of old buildings and Old Masters, or a stopping place on the journey to Germany or Switzerland, can but welcome the new interest which is taken in her by the wider public on both sides of the Atlantic, for she is worthy of it. The episode which the world pities is not an historical accident, ennobling by chance the record of an ignoble people. If under the ordeal they have become great, it was because they had greatness in them.

The author in speaking of the architecture of Belgium has his doubts as to how much of it will escape the devastation of the European War. "But in any case the first sequel of peace in Belgium must be rebuilding. It will be fortunate then," the author says, "that in consequence of the building fever of recent years the country is equipped beyond the ordinary needs of its size with architects, builders, trained workmen, and experience, which may enable its ruined towns to rise purified and beautified from their ashes." This statement may be true if the architects, builders, trained workmen and other workers have not been killed in battle. The devastation of Belgium, alone is argument enough for the rest of the world to quit the foolishness of war.

An Open Letter to the Nation with Regard to a Peace Plan. By JAMES HOWARD KEHLER, New York: Mitchell Kennerley. 1915, pp 25.

The letter in this neat little volume is addressed to The President, The Ministers of Government and The Congress of the United States: To the Members of the Peace Societies: To the Press and to the People:

There is a lot of good common sense in this letter. For example, in the opening of the letter the author asks that the name of the War Department be changed to that of the Peace Department, and that its Ministers hereafter be known as Secretaries of Peace, and that what are known as War Policies hereafter may be known as Peace Policies. He shows that in reality the Secretary of War is really a secretary of Peace, and that his primary office is not to make war, but to avert it, and the degree of his prestige is in direct

ratio to his success in preserving the peace and tranquility of our people, and that our war budgets are in fact peace budgets, etc.

Of course, we know that the Secretary of War does not have a thing to do with the diplomatic correspondence that arranges for a war, but nevertheless the idea of giving significance to the symbolism of the names of the offices and their ministers has considerable value.

The Socialists and the War. By WILLIAM ENGLISH WALLING, author of "Socialism As It Is," "Progressivism and After," etc., etc. New York: Henry Holt & Co., 1915. 512 pp. \$1.50 net.

The author here presents a documentary statement of the position of the Socialists of all countries; with special reference to their peace policies, and includes a summary of the Revolutionary state Socialist measures adopted by the Governments at war. The editor of this work is a well known writer on Socialism, being the author of "Socialism As It Is," "Progressivism and After," and other books along this line, of which it may be said that this is his best effort.

About three fourths of the book consists of documentary statements of Socialists of all countries toward the war, and the running editorial comments set forth vividly the conditions under which the various statements were made with an indication of why they are important.

The Socialist and a good many others who are great on asking questions will find a few here that are well answered in a fair way. Would the common people of Europe have declared war? Have the peoples of Europe definitely accepted monarchy, or is republicanism a force to be reckoned with? If one side forced the other side to disarm, would this partial disarmament make for total disarmament, or would it make for a war of revenge? And many other questions of a similar nature. A large part of the material utilized by the author, has appeared, under his editorship in The New Review. The Socialists believe that war should be ended immediately, or when the present European war becomes a "draw."

Defenseless America. By HUDSON MAXIM. New York: Hearst's International Library Company. 1915. Price, \$2.00, pp. 318.

This volume has been named "A call to arms against War." A phalanx of facts are presented upon the defenseless condition of this country. After reading this volume we seem to be as helpless as a new-born baby. As a fact

we are a new born country. The United States is the youngest of the family of nations, but nevertheless we are a lusty youngster.

It is a fact that self-preservation is the first law of nature. Self-preservation should also be the first law of nations. Is that the case in this country? Upon this subject Mr. Maxim has written this interesting volume.

Every person has a right to his own opinions, and he also has a right to have such opinions as he thinks are right. That is an undisputed privilege. Many think that the United States is well enough prepared, while on the other hand many think that this Government is in a precarious condition on account of its lack of defensive material. Mr. Maxim in accordance with the title of his book holds the latter view. According to his first chapter, any statement against heavier national armament is a dangerous preachment.

Ernest Haeckle has said that there is nothing constant but change. He might have said also that there is a no more consistent thing in its constancy than human inconsistency. And Herbert Spencer rightfully said that, as he grew older, the more and more he realized the extent to which mankind is governed by irrationality. Billings was probably right when he said, "It is not so much the ignorance of men that makes them ridiculous as what they know that is not so."

German Philosophy and Politics. By JOHN DEWEY, Professor of Philosophy in Columbia University. New York, 1915. Henry Holt & Co. Price, \$1.25 net, pp. 134.

Dr. John Dewey, one of the world's greatest philosophers, here gives the unprofessional philosopher a succinct notion of the development of classic German philosophy from Kant to Hegel. All technical details are omitted. Professor Dewey gives some interesting side-lights on German war philosophy, and shows how German thought took shape in the struggle for German nationality against the Napoleonic menace, and how profoundly that crisis affected the philosophy of morals, of the state, and of history which has since that time penetrated into the common consciousness of Germany.

Doctor Dewey thinks that cavalry generals who employ philosophy to bring home practical lessons are mighty rare outside of Germany. More significant than the words themselves are their occasion and the occupation of the one who utters them. Outside of Germany it would be indeed hard to

find an audience where an appeal for military preparedness would be reinforced by allusions to the Critique of Pure Reason. By taking the statements as given by the German philosophers one can understand the temper in which opinion in Germany meets a national crisis. When the philosopher Eucken, who received the Nobel prize for contributing to the idealistic literature of the world, justifies the part taken by Germany in a world war because the Germans alone do not represent a particularistic and nationalistic spirit, but embody the “universalism” of humanity itself, he utters a conviction bred in German thought by the ruling interpretation of German philosophic idealism. By the side of this motif the glorification of war as a biologic necessity, forced by increase of population, is a secondary detail giving a totally false impression when isolated from its context. Philosophical justification of war follows inevitably from a philosophy of history composed in nationalistic terms. The author says that history is the movement, the march of God on earth through time. Only one nation at a time can be last and hence the fullest realization of God.

The War and America. By HUGO MÜNSTERBERG. D. Appleton & Co., New York and London. 1915. \$1.00 net, pp. 210.

The Peace and America. By PROF. HUGO MÜNSTERBERG. D. Appleton & Co., New York and London. 1915. Price \$1.00 net, pp. 280.

These two illuminating books written by Professor Münsterberg of Harvard University, give a wealth of information regarding the causes of the Great War. He is known as perhaps the greatest psychologist in America to-day. He is, however, well qualified to write on this great subject on account of his intense interest in the outcome of the conflict, and also on account of his great desire for peace between nations.

The War and America discusses the essential factors and issues of the European War and their meaning and import for Americans. All the fighting that has been done through the thousands of years past were nothing but mere skirmishes as compared with the conflict of to-day. The one great lesson for America in the European conflict will show that the loss and waste will be so much larger than the righting of a possible wrong will amount to that it will be utterly impossible to even think of going into a war on a large scale as has been done in the Great War. All concessions could have been granted a half dozen times over by each and every nation involved in the conflict, and yet, the cost would have been but a mere drop

in the bucket as compared with what it now amounts to, after one year of hostilities. Professor Münsterberg says: "A gigantic destruction of human life such as this war demands must naturally force on everyone the wish for a substitute which is less painful to the imagination." Perhaps good will come of the war in that respect. It will be such a lesson to the world that it will be thoroughly awakened to the real danger of the present foolish method of settling international disputes. Professor Münsterberg is a writer of great fame, having written more books on Psychology than any other man, he gives a broad interpretation to that peculiar state of international affairs which have ultimately to reckon with the Peace Movement.

THE INFORMATION DESK

An article by Ellis B. Usher, of the University of Wisconsin, in a current magazine, says the vote of the State is steadily falling off. In the year 1900 the percentage of votes cast to the voting population was a fraction above 74. In 1912 the percentage had fallen to 46½, and in 1914 it was only 43. Professor Usher attributes the steady decrease in the number of votes cast to the disgust of the voters with the primary election laws and other meddlesome legislation. "We have attempted," he says, "to substitute machinery for citizenship. We have cumbered our statute books with laws, and expected them, unaided and automatically to create citizens faithful to their duties. Instead, this new machinery has proved an annoyance, and a restraint upon the electorate, and has defeated that untrammelled action by the voter that is of the highest essence of citizenship."

In his address at the annual meeting of the United States Steel Corporation, Judge Gary the Chairman of the Board of Directors, said there had been quite a general feeling that the government of the United States had not pursued a well defined and consistent policy toward business, but that on the contrary it had been the policy of some of the governmental agencies to interfere with, to delay and obstruct natural progress; to punish and destroy rather than to regulate and encourage. He thought there were signs now of a fairer policy, and consequently of a better business outlook.

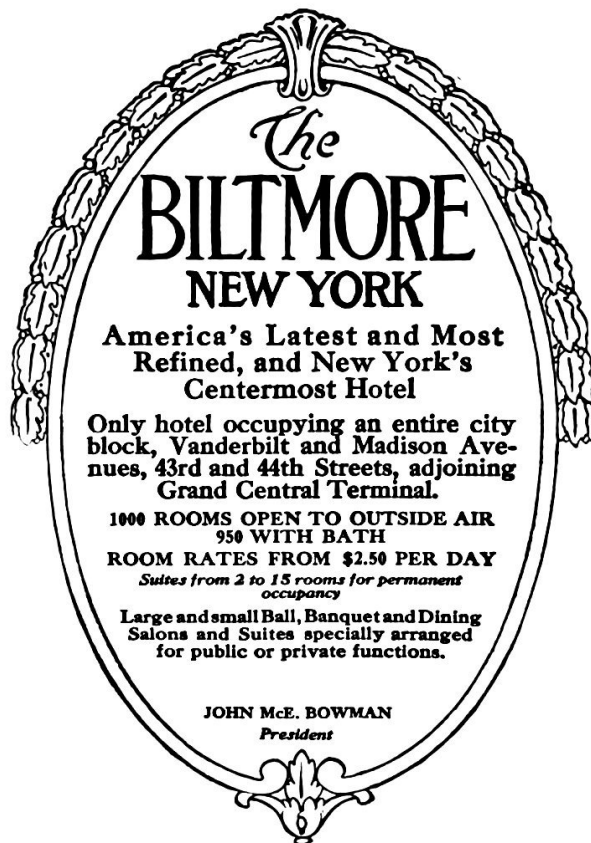
Jose Cascales Munoz, ex-professor of sociology in the University of Madrid, Spain, has issued an eloquent plea for peace. He says that disarmament can be brought about only by an agreement of the stronger powers and the formation of an international army to support the decisions of a world court to which all international disputes must be referred. For the

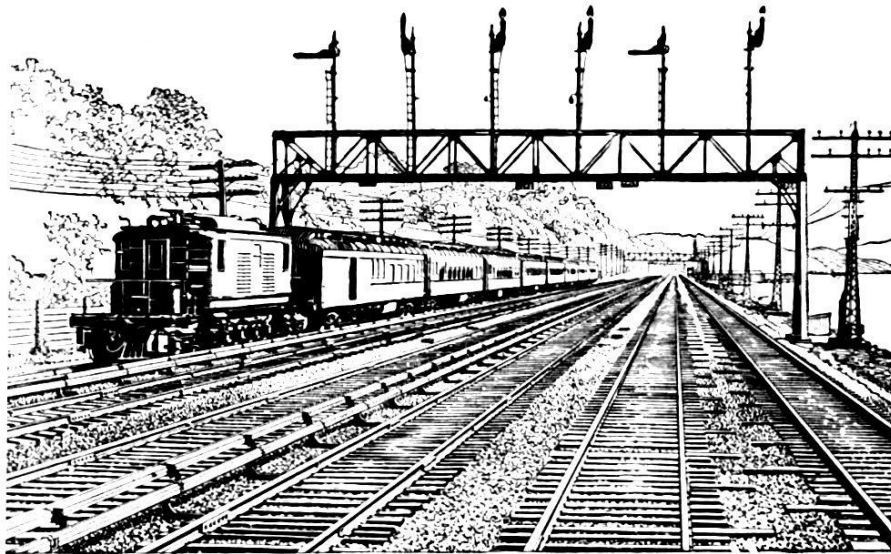
establishment of such a world court a world conference would be necessary. Professor Munoz thinks that if even three strong nations could unite for the formation of such a world court the others could gradually be brought into line, and little by little the work would be made perfect.

The New York Peace Society has sent a letter to President Wilson setting forth the Society's views on national defense and armament. The letter was signed, among others, by Andrew Carnegie, Oscar S. Straus and Jacob H. Schiff. It declares that the United States needs a powerful navy for defense, but never for aggression, and that our systems of national and state militia should be extended on such a basis as to constitute an adequate land defense.

Prof. Kuno Meyer, speaking of the recent activities of Japan, says: "This is a golden opportunity for Japan. She realizes that the European nations cannot interfere with her and that America will not." This is attributing selfish and material motives to Japan. If she is animated by such motives it is certainly an opportunity for her to push for the hegemony of Asia while the nations of Europe are cutting each other's throats, and the American nations are anxiously waiting to see what the effect of the great struggle is to be upon the Western Hemisphere.

A correspondent of a daily paper suggests that automobiles be equipped with "cow-catchers," or some device which would throw any unfortunate pedestrian, who happens to be run into, aside, instead of drawing him under the wheels. This suggestion is worth considering. A cow-catcher on an automobile might not be ornamental, but if it would save human life the owners and operators of the machines could stand a little ugliness. Besides, there is sufficient ingenuity among auto-builders to make a device of that kind that would not be positively hideous. If properly constructed it would often save property as well as life and limb.





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“The Water Level Route”

“There is a certain solidity and permanence about this concern which smacks of nothing unfinished.”

*Albert W. Atwood
in Harper’s Weekly*



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*** END OF THE PROJECT GUTENBERG EBOOK THE WORLD
COURT (VOL. I, NO. 1, AUG. 1915) ***

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